Casebook

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Description

Case extracts organised by topics. It contains required reading for each topic.

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Topic 1: Introduction to Intentional Torts

Hutchins v Maughan [1947] VLR 131; [1947] ALR 201 (Supreme Court of Victoria)

Facts:

The defendant laid poisonous baits on unfenced land which were subsequently picked up by the complainant's dogs. They died as a result. The complainant sued in trespass.

Decision:

The injury suffered by the complainant was consequential upon and not directly or immediately occasioned by the act of the defendant and trespass did not lie.

Extracts from Reasons:

HERRING CJ: [132] The complainant's claim was laid alternatively in negligence, nuisance or trespass. The police magistrate upheld the defences taken so far as negligence and nuisance were concerned, but gave judgment for the complainant on his trespass claim. Before me it was conceded that the police magistrate was right in his decision as to negligence and nuisance. And the only question argued before me was whether on the facts of the case the police magistrate could properly enter judgment as he did for the complainant on his trespass claim. The laying of the baits was admittedly an unlawful act, and consequently it was not disputed that the complainant had a cause of action for the injuries he suffered as a consequence thereof. But it was contended for the defendant that such cause of action sounded only in case and not in trespass, and that the complainant having failed in his claims in case, viz., those for nuisance and negligence, is now without remedy.

The basis of the defendant's contention was that the injury suffered by the complainant in the present case was not occasioned by but was merely consequential upon the defendant's act complained of, viz., the laying of the baits, and so was not a trespass. The principle was thus stated in 1725 in Reynolds v Clarke (1725) 93 ER 747:

> The distinction in law is, where the immediate act itself occasions a prejudice, or is an injury to the plaintiff's person, house, land, etc., and where the act itself is not an injury, but a consequence from that act is prejudicial to the plaintiff's person, house, land, etc. In the first case trespass vi et armis will lie; in the last it will not, but the plaintiff's proper remedy is by an action on the case.

In 1773 in the famous case of Scott v Shepherd (1773) 96 ER 525, Blackstone J said he "took the settled distinction to be that where the injury is immediate, an action of trespass will lie; where it is only consequential, it must be an action on the case." And he cited the example of a man's throwing a log into the highway; an example later made use of by Le Blane J in 1803 in Leame v Bray (1803) 102 ER 724 where the learned Judge said:

> But in all the books the invariable principle to be collected is that where the injury is immediate on the act done, there trespass lies; but where it is not immediate on the act done, but consequential, there the remedy is in case. And the distinction is well instanced by the example put of a man's throwing a log into the highway; if at the time of its being thrown it hit any person, it is trespass; but if after it be thrown, any person going along the road receive an injury by falling over it as it lies there, it is case … trespass is the proper remedy for an immediate injury done by one to another; but where the injury is only consequential from the act done, there it is case.

… Each case must, of course, be determined on its own facts and in the present case the question is whether on its facts the injury the complainant suffered in the loss of his dogs was immediate or consequential, that is to say, whether it was directly occasioned by the defendant's act in laying the baits or was merely consequential upon that act. Now the baits were laid by the defendant before the complainant took his dogs on to the land in question. They may even have been laid before he arrived in the vicinity. And had he not chosen to come into the vicinity and bring his dogs with him he would have suffered no injury from the defendant's act. Nor indeed would he have done so, had he not taken his dogs on to the land where the baits were laid. The doing of the act therefore of itself did him no mischief. Before he could suffer an injury, he had himself to intervene by coming to the land and bringing his dogs thereon.

In these circumstances the injury he suffered cannot, in my opinion, be said to have followed so immediately in point of causation upon the act of the defendant as to be termed part of the act. It should rather be regarded merely as consequential upon it and not as directly or immediately occasioned by it. And so trespass does not lie in respect of [the] defendant's act in laying the baits. Had the baits been thrown by the defendant to the complainant's dogs, then no doubt the injury could properly have been regarded as directly occasioned by the act of the defendant, so that trespass would lie. As it was, it was necessary for the complainant himself to bring his dogs with him to the baits in order that the injurious consequences, of which he complains, should result from the defendant's act. His position is like that of the man who, going along the road upon which a log has been thrown, receives an injury by falling over it. In such a case the man who threw the log upon the road has, of course, caused the mischief, but trespass does not lie, as the injury is consequential upon his act and not immediately or directly occasioned thereby. Had the man who fell over the log not passed that way, he would have suffered no injury from the other's act.

Williams v Milotin (1957) 97 CLR 465 (High Court of Australia)

Facts and Procedural History:

A young boy (the plaintiff) was riding his bicycle on a public street when he was hit by a truck driven by the defendant. The boy was injured. The boy sued the driver for damages, arguing that the driver had acted negligently. The incident happened on May 7, 1952, but the lawsuit was not officially started until July 19, 1955. This was more than three years after the accident, but less than six years after.

The law at the time had different "limitation periods" (deadlines) for different types of legal claims.

- Lawsuits for "trespass to the person" (direct physical contact) had to be started within **3 years**.
- Lawsuits based on "negligence" (an action on the case) could be started within **6 years**.

The plaintiff was successful at first instance. The defendant appealed.

The defendant argued that because the accident involved direct contact, the case should be treated as "trespass." Since more than 3 years had passed, he claimed the lawsuit was too late and should be thrown out. The plaintiff argued that he had brought the case as a claim for "negligence," which meant the 6-year deadline should apply.

Decision:

Appeal Dismissed. The plaintiff was allowed to use the longer 6-year period because they specifically framed their case as an action for negligence. Courts recognise that the same set of facts can sometimes fit into different legal categories or causes of action. Plaintiffs are generally entitled to choose the cause of action they want to pursue, provided they can prove the necessary elements for that specific claim.

Extracts from Reasons:

DIXON CJ, McTIERNAN, WILLIAMS, WEBB AND KITTO JJ: [469] [T]he defendant's starting point is that the action the plaintiff has brought could formerly have been properly framed as an action of trespass to the person.

The word "formerly" seems to mean prior to the passing of the Supreme Court Act 1878 of South Australia, by which the "judicature system" was adopted: cf. definition in s 5 of the Supreme Court Act 1935 (SA).

At that time the present action might have been framed as an action of trespass. For it seems that the facts which the plaintiff, by his next friend, intends to allege are that he was immediately or directly hit by the motor car driven by the defendant as a result of the negligence of the defendant himself. There is no suggestion that the defendant intended to strike him. If that had been the allegation the action could have been brought in trespass and not otherwise. But as only the negligence of the defendant is relied upon, while the cause of action might have been laid as trespass to the person, the action might also have been brought as an action on the case to recover special or particular damage caused by the defendant's negligence. Had the damage been caused indirectly or immediately by the defendant or by his servant (a state of things to be distinguished from violence immediately caused by the defendant's own act) the action must have been brought as an action on the case and not otherwise. ...

[O]n the same set of facts two causes of action arose to which different periods of limitation were respectively affixed. In saying that two causes of action arose no more is meant than that two traditional categories continue to exist in the contemplation of the material provisions of s 35(c) and (k) and s 36 and that there is no difficulty in distinguishing between the categories either notionally or historically.

Plainly enough the plaintiff relies on the category which we commonly call negligence but which the statute looks at as an action of the kind which once was brought for the recovery of special or particular damage caused by conduct on the part of the defendant making it actionable, in this instance negligence. Why should the plaintiff's action be limited by any other period of time than that appropriate to the cause of action on which he sues? The two causes of action are not the same now and they never were. When you speak of a cause of action you mean the essential ingredients in the title to the right which it is proposed to enforce. The essential ingredients in an action of negligence for personal injuries include the special or particular damage – it is the gist of the action – and the want of due care. Trespass to the person includes neither. But it does include direct violation of the protection which the law throws round the person. It is true that in the absence of intention of some kind or want of due care, a violation occurring in the course of traffic in a thoroughfare is not actionable as a trespass. It is unnecessary to inquire how that comes about. It is perhaps a modification of the general law of trespass to the person. But it does not mean that trespass is the same as actionable negligence occasioning injury. It happens in this case that the actual facts will or may fulfil the requirements of each cause of action. But that does not mean that within the provisions of the Limitation of Actions Act 1936, ss 35 and 36, only one "cause of action" is vested in the plaintiff.

If he had chosen to discard negligence and special or particular damage as ingredients in his cause of action and rely instead on the elements amounting to trespass or assault, something might be said for the defendant's reliance on s 36. But not otherwise. Read together, the true meaning and effect of s 35 and s 36 is that six years shall be the period of limitation for an action of damages based on negligence which formerly might have been brought as an action on the case in which the damages formed the gist of the action and negligence giving rise to the damage formed the conduct by reason of which it became actionable.

In our opinion the decision of the Supreme Court is right and the appeal should be dismissed.

Topic 2: Trespass to Persons and Goods

Trespass to Persons

***Rixon v Star City Pty Ltd* [2001] NSWCA 265 (New South Wales Court of Appeal)**

Facts:

The appellant, Brian Rixon, had been made the subject of an exclusion order under s 79 of the *Casino Control Act* 1992 (NSW). On 25 November 1996, while he was standing at a roulette table in the casino, an employee of the respondent (Mr Sheldon) approached him and placed a hand on his shoulder to engage his attention before informing him that, as an excluded person, he was required to follow him to an interview room. The trial judge (Balla ADCJ) found that Mr Sheldon placed his hand on Rixon's shoulder without using any force or causing injury, and rejected Rixon's evidence that he had been "grabbed" and "spun around." Rixon sued in assault, battery, wrongful arrest and false imprisonment, and appealed after his claims failed at trial.

Decision:

The appeal was dismissed. On the battery claim, the Court of Appeal held that the touching was not a battery — not because it lacked anger or hostility, but because the contact was for the purpose of engaging Rixon's attention and fell within the category of physical contact generally acceptable in the ordinary conduct of daily life. Significantly, the Court accepted that anger or hostility is *not* a necessary element of battery; the correct test is whether the touching exceeds what is generally acceptable in everyday life.

Extracts from Reasons:

SHELLER JA (Priestley and Heydon JJA agreeing):

49 Mr Rixon's evidence about the alleged battery was specific. He described the approach of the SHC employee, by implication Mr Sheldon, as follows:

"I heard somebody grab me in the shoulder ..... and spun me around".

In cross-examination he said:

"Q. Your account of the events Mr Rixon is that whilst you were standing at the roulette table someone approached you, put their hand on your shoulder and I think you said turned you around and then asked were you Brian Rixon or something to that effect, is that your evidence? A. That's what happened.

Q. I suggest to you that no-one at that point touched you on the shoulder at all and that all that was simply done was you were approached and the question asked, are you Brian Rixon? A. That's incorrect."

50 Apparently the questioner's phrase "put their hand on your shoulder" and Mr Rixon's assent to the question led the trial Judge to "accept the evidence of the plaintiff in relation to the manner he was approached by Sasha Sheldon, that is that he placed his hand on the plaintiff's shoulder." Placing the hand on the shoulder is not grabbing the shoulder, that is to say, seizing it suddenly. Her Honour must have rejected the evidence of grabbing and spinning around. Having made this finding, the trial Judge rejected Mr Rixon's case in battery on the basis that the touching lacked "the requisite anger or hostile attitude".

51 The placing of the hand on the shoulder could be a battery. As Holt CJ said in *Cole v Turner* (1704) 6 Mod 149; 87 ER 907 "the least touching of another in anger is a battery". On the other hand, as the Chief Justice said, "if two or more meet in a narrow passage, and without any violence or design of harm, the one touches the other gently, it will be no battery".

52 However the absence of anger or hostile attitude by the person touching another is not a satisfactory basis for concluding that the touching was not a battery. In *In re F (Mental Patient: Sterilisation)* [1990] 2 AC 1 at 73 Lord Goff of Chieveley said:

"In the old days it used to be said that, for a touching of another's person to amount to a battery, it had to be a touching 'in anger' (see Cole v Turner *per Holt CJ); and it has recently been said that the touching must be 'hostile' to have that effect (see* Wilson v Pringle *[1987] QB 237, 253). I respectfully doubt whether that is correct. A prank that gets out of hand; an over-friendly slap on the back; surgical treatment by a surgeon who mistakenly thinks that the patient has consented to it - all these things may transcend the bounds of lawfulness, without being characterised as hostile. Indeed the suggested qualification is difficult to reconcile with the principle that any touching of another's body is, in the absence of lawful excuse, capable of amounting to a battery and a trespass."*

53 In *Collins v Wilcock* [1984] 1 WLR 1172 Lord Goff (then Robert Goff LJ) sitting in the Divisional Court, at 1177-8 referred to the fundamental principle, plain and incontestable, that every person's body is inviolate, and that any touching of another person, however slight may amount to a battery. His Lordship referred to *Cole v Turner* and to *Blackstone's Commentaries*, 17th ed (1830) Vol 3, 120:

"the law cannot draw the line between different degrees of violence, and therefore totally prohibits the first and lowest stage of it; every man's person being sacred, and no other having a right to meddle with it, in any the slightest manner."

His Lordship continued:

"But so widely drawn a principle must inevitably be subject to exceptions. For example, children may be subjected to reasonable punishment; people may be subjected to the lawful exercise of the power of arrest; and reasonable force may be used in self-defence or for the prevention of crime. But, apart from these special instances where the control or constraint is lawful, a broader exception has been created to allow for the exigencies of everyday life. Generally speaking, consent is a defence to battery; and most of the physical contacts of ordinary life are not actionable because they are impliedly consented to by all who move in society and so expose themselves to the risk of bodily contact. So nobody can complain of the jostling which is inevitable from his presence in, for example, a supermarket, an underground station or a busy street; nor can a person who attends a party complain if his hand is seized in friendship, or even if his back is, within reason, slapped: see Tuberville v Savage (1669) 1 Mod 3. Although such cases are regarded as examples of implied consent, it is more common nowadays to treat them as falling within a general exception embracing all physical contact which is generally acceptable in the ordinary conduct of daily life. We observe that, although in the past it has sometimes been stated that a battery is only committed where the action is 'angry, revengeful, rude, or insolent' (see Hawkins, Pleas of the Crown, 8th ed (1824), vol 1, c15, section 2), we think that nowadays it is more realistic, and indeed more accurate, to state the broad underlying principle, subject to the broad exception.

Among such forms of conduct, long held to be acceptable, is touching a person for the purpose of engaging his attention, though of course using no greater degree of physical contact than is reasonably necessary in the circumstances for that purpose. So, for example, it was held by the Court of Common Pleas in 1807 that a touch by a constable's staff on the shoulder of a man who had climbed on a gentleman's railing to gain a better view of a mad ox, the touch being only to engage the man's attention, did not amount to a battery: see Wiffin v Kincard*(1807) 2 Box & Pul 471; for another example, see* Coward v Baddeley *(1859) 4 H & N 478. But a distinction is drawn between a touch to draw a man's attention, which is generally acceptable, and a physical restraint, which is not. So we find Parke B observing in* Rawlings v Till *(1837) 3 M & W 28, 29, with reference to* Wiffin v Kincard*, that 'There the touch was merely to engage [a man's] attention, not to put a restraint upon his person'."*

54 This distinction is explained in *Clerk & Lindsell on Torts*, 17th ed, 12-06 where the question is posed whether the physical contact imposed on the plaintiff was in excess of that "generally acceptable in everyday life". It is pointed out in a footnote that acceptable conduct must be considered in the context of the incident in dispute.

"For an adult to jump on another and snatch her shoulder bag is clearly unacceptable. Between 13-year-old schoolboys it might perhaps be seen as 'as unremarkable as shaking hands'."

55 No error has been demonstrated which would entitle this Court to interfere with the trial Judge's finding that the touching lacked "the requisite anger or hostile attitude." More accurately, and consistently with her Honour's findings, it could not be said that the conduct of Mr Sheldon in the circumstances found and clearly for the purpose of engaging Mr Rixon's attention, was not generally acceptable in the ordinary conduct of daily life.

Assault

56 A traditional definition of assault is "an overt act indicating an immediate intention to commit a battery, coupled with the capacity of carrying that intention into effect"; see *Clerk & Lindsell* 12-12. The irrelevance of the intention to carry the battery into effect is demonstrated by the act of presenting an unloaded firearm in such circumstances that if it had been loaded its discharge would have been likely to cause injury. Such an act is an assault unless the person at whom it is pointed knows that it is empty; see generally *Clerk & Lindsell* 12-13.

57 According to *Fleming, The Law of Torts*, 9th ed, at 31-32:

"Assault consists in intentionally creating in another person an apprehension of imminent harmful or offensive contact. .... there may be an assault without battery if the threat to inflict unlawful force is not in fact carried out. .... Since the gist of assault lies in the apprehension *of impending contact, the effect on the victim's mind created by the threat is the crux, not whether the defendant actually had the intention or the means to follow it up. The intent required for the tort of assault is the desire to arouse apprehension of physical contact, not necessarily to inflict actual harm."*

58 Proof of assault requires proof of an intention to create in another person an apprehension of imminent harmful or offensive contact; see, for example, *Hall v Fonceca* [1983] WAR 309. If the assault lies in creating an apprehension of impending contact, proof of the assault does not require proof of an intention to follow it up or carry it through. The trial Judge rejected the case in assault by finding "that the actions of the defendant's employee lacked `the requisite intention in relation to assault'." By this her Honour must have meant the intention to create in Mr Rixon an apprehension of imminent harmful or offensive contact. Having rejected Mr Rixon's account of being grabbed or spun round, her Honour's finding that Mr Sheldon placed his hand on Mr Rixon's shoulder without using any degree of force and said "Are you Brian Rixon?" led her to conclude that Mr Sheldon had no intention of creating in Mr Rixon an apprehension of imminent harmful or offensive conduct.

59 In my opinion, the evidence left it open to her Honour to find that the necessary intention to create in Mr Rixon an apprehension of imminent harmful or offensive contact was lacking. The appeal against the trial Judge's decision that neither battery nor assault was made out accordingly fails.

Trespass to Goods

Penfolds Wines Pty Ltd v Elliott **(1946) 74 CLR 204 (High Court of Australia)**

Facts:

Penfolds Wines manufactured and sold wine in bottles that were embossed with the company's name and a statement that the bottle remained the company's property; customers purchased the wine only and not the bottles. The respondent, Elliott, ran a business and received Penfolds' bottles from his brother. Elliott used Penfolds' bottles to sell wine. Penfolds sued Elliott in trespass and conversion and sought an injunction to restrain Elliott from using its bottles.

Decision:

The claim in trespass to goods failed because Penfolds did not have title to sue: trespass protects possession, and Penfolds was not in possession of the bottles at the time of the interference. There was no infringement of the possession of anyone — at the relevant time Elliott was in possession of the bottles, having been left them by his brother (as bailee).

On conversion, a majority (Latham CJ, Starke, McTiernan and Williams JJ) held that Elliott's conduct amounted to conversion. Penfolds had a right to immediate possession of the bottles, even though it lacked actual possession (which is why the trespass claim failed). Elliott intentionally filled the bottles with his own wine, and this dealing was inconsistent with the dominion and right of property of the owner, Penfolds — an assertion of dominion over the goods contrary to the rights of the person entitled to possession.

The case is significant for distinguishing trespass to goods from conversion: trespass turns on interference with actual possession (and thus title to sue), whereas conversion requires a serious interference amounting to an assertion of dominion inconsistent with the rights of the person entitled to possession, and can be maintained by a person with the right to immediate possession.

Extracts from Reasons:

In relation to trespass to goods (and the element of possession)

DIXON J (STARKE, McTIERNAN and WILLIAMS JJ agreed with DIXON J that claim for trespass failed):

[224]... The case against the respondent, therefore, amounts to no more than this. He supplied a few customers with wine which he poured into bottles brought by them and left with him for the purpose. Some of these bottles bore brands showing that they belonged to the sellers of wine, or of other liquor who retained ownership of the bottles. Among such bottles, on at least one occasion, were bottles of the appellants, that is, the two left by the respondent's brother. The bottles were returned to those who brought them, no confusion in the identity of the bottles being proved. On the occasion of the visit of the inspector and the customs officer, the respondent sur- rendered to them, as if in obedience to the law, two such bottles in exchange for the value of the wine.

What wrong to possession or property on the part of the respon- dent do these facts disclose ? I know of none. It cannot be trespass because there is, on the part of the respondent, no infringement upon the possession of any one...

In relation to conversion

LATHAM CJ:

[218]... The defendant in the present case handled and used the plaintiff's bottles for the purpose of exercising what he regarded as his right to use them for containing any liquid that he chose to put into them and to keep them for that purpose until he delivered them, with their contents, to his customers-his brother or other persons who brought branded bottles to him: See Pollock on Torts, 14th ed. (1939), p. 286 The grievance [in conversion] is the unauthorized assumption of the powers [219] of the true owner. Actually dealing with another's goods as owner, for however short a time and however limited a purpose, is therefore conversion.' The defendant dealt with the bottles on the basis that he was entitled to hold them when brought to him by his brother or other customers and to use them for the purposes of his trade. In Burroughes v. Bayne 1 , quoted by Sir William Holdsworth in History of English Law, vol. 7, p. 415, Channell B. said :- Every asportation is not a conversion; and therefore it seems to me that every detention cannot be a conversion. If it were, the mere removal of a chattel, independently of any claim over it in favour of the party himself, or anyone else whatever, would be a conversion. The asportation of a chattel for the use of the defendant or third persons, amounts to a conversion, and for this reason, whatever act is done inconsistent with the dominion of the owner of a chattel, at all times and places over that chattel, is a conversion."

In the present case there was not, in my opinion, a mere removal of the bottles received from the defendant's brother independently of any claim over them in favour of the defendant or anyone else. There was a handling of the bottles, an actual user of them, for the purposes of the defendant's trade-for containing and disposing of the defendant's wine and for the use of the defendant's customer, his brother. Such dealing with the bottles, under a claim of right SO to deal with them (a claim in which the defendant still persists) was inconsistent with the dominion of the owner of the bottles and was a conversion.

Interesting note: Dixon J found the conduct did not amount to conversion, calling the use of bottles "temporary and harmless" and therefore not serious enough to reach the threshold required for conversion.

Topic 3: Trespass to Land and Nuisance

Bernstein v Skyviews & General Ltd **[1977] 2 All ER 902**

Facts:

Skyviews' aircraft flew several hundred feet above Lord Bernstein's Kent estate, took a single aerial photograph of his house without permission and offered it to him for sale. Bernstein sued in trespass, asserting ownership of the airspace above his land on the *usque ad coelum* maxim, and an invasion of his right to privacy.

Decision:

There was no trespass: a landowner's rights in the airspace extend only to such height as is necessary for the ordinary use and enjoyment of the land and structures on it, and above that height the owner has no greater rights in the airspace than any other member of the public

Extracts from Reasons:

Griffiths J at 906-908:

Adjoining owners then know where they stand; they have no right to erect structures overhanging or passing over their neighbours' land and there is no room for argument whether they are thereby causing damage or annoyance to their neighbours about which there may be much room for argument and uncertainty. But wholly different considerations arise when considering the passage of aircraft at a height which in no way affects the user of the land. ...

I can find no support in authority for the view that a landowner's rights in the air space above his property extend to an unlimited height. In *Wandsworth Board of Works v United Telephone Co* Bowen LJ described the maxim, *usque ad coelum*, as a fanciful phrase, to which I would add that if applied literally it is a fanciful notion leading to the absurdity of a trespass at common law being committed by a satellite every time it passes over a suburban garden. The academic writers speak with one voice in rejecting the uncritical and literal application of the maxim: see, by way of example only, Winfield and Jolowicz on Tort, Salmond on Tort, Shawcross and Beaumont on Air Law, McNair on the Law of the Air, and *Halsbury's Laws of England*. I accept their collective approach as correct. The problem is to balance the rights of an owner to enjoy the use of his land against the rights of the general public to take advantage of all that science now offers in the use of air space. This balance is in my judgment best struck in our present society by restricting the rights of an owner in the air space above his land to such height as is necessary for the ordinary use and enjoyment of his land and the structures on it, and declaring that above that height he has no greater rights in the air space than any other member of the public.

Applying this test to the facts of this case, I find that the defendants' aircraft did not infringe any rights in the plaintiff's air space, and thus no trespass was committed. It was on any view of the evidence flying many hundreds of feet above the ground and it is not suggested that by its mere presence in the air space it caused any interference with any use to which the plaintiff put or might wish to put his land. The plaintiff's complaint is not that the aircraft interfered with the use of his land but that a photograph was taken from it. There is, however, no law against taking a photograph, and the mere taking of a photograph cannot turn an act which is not a trespass into the plaintiff's air space into one that is a trespass.

I was told by counsel that the plaintiff was particularly anxious that his house should not be photographed from the air lest the photograph should fall into criminal hands as it might prove a valuable aid to a terrorist. This anxiety is readily understandable and must attract sympathy, although I should add that it is not suggested that this was a likely consequences as a result of the defendants' activities. Counsel for the plaintiff, however, conceded that he was unable to cite any principle of law or authority that would entitle the plaintiff to prevent someone taking a photograph of his property for an innocent purpose, provided they did not commit some other tort such as trespass or nuisance in doing so. It is therefore interesting to reflect what a sterile remedy the plaintiff would obtain if he was able to establish that mere infringement of the air space over his land was a trespass. He could prevent the defendants flying over his land to take another photograph, but he could not prevent the defendants taking the virtually identical photograph from the adjoining land provided they took care not to cross his boundary, and were taking it for an innocent as opposed to a criminal purpose.

Roy v O'Neill **(2020) 273 CLR 91; [2020] HCA 45 (High Court of Australia)**

Facts:

A police officer, Constable Elliott, attended the unit occupied by Ms Roy and Mr Johnson to conduct a "check" in relation to compliance with a Domestic Violence Order (DVO), of which Mr Johnson was the protected person. The officer entered the curtilage of the premises and approached the front door. While there, the officer required Ms Roy to provide a breath sample; she returned a positive reading and

was charged. Ms Roy contended that the police had trespassed on the curtilage of her home - arguing that the officer's purpose was a coercive one (directing her to take a breath test) that fell outside any implied licence to enter - and that even if there was an implied licence, it terminated (making the officer a trespasser) when he asked her to provide the breath sample.

Decision:

The appeal was dismissed. The police officer was not a trespasser. To enter private premises lawfully, an entrant must justify entry by consent or licence of the occupier; where no express licence exists, one may be implied in law from the circumstances. The common law implies a licence in favour of any member of the public, including police, to go upon the path or driveway to the entrance of a dwelling for the purpose of lawful communication with an occupier, unless entry is negated by a notice or the gate is locked, and this licence may be revoked at any time. Critically, the implied licence to communicate is not negated merely because the entrant also has an additional purpose (here, checking DVO compliance); a person who enters for a purpose within the licence is not a trespasser simply because they enter "with another and alien purpose in mind". On the facts, the officer's purpose (found by the trial judge and Court of Appeal) included the lawful purpose of checking on the wellbeing of the protected person, which was sufficient. An entrant only becomes a trespasser where the sole purpose of entry is outside the licence, where the licence is revoked and they remain, or where they act in a manner inconsistent with the licence.

Extracts from Reasons:

KIEFEL CJ [11]-[12]: It is well understood that the law of trespass requires that for a person lawfully to enter private premises there must be an invitation or permission from the occupier respecting that entry. The common law also recognises that such a rule would be unworkable in our society if it were strictly applied so as to render all visitors who did not have an express permission from the occupier, trespassers ... It effects that qualification by implying a permission, on the part of an occupier, for persons to enter upon premises and approach a dwelling to engage in lawful purposes. It balances its recognition of that implied permission by acknowledging that an occupier may negate the permission, by sufficiently indicating that entry is not permitted, and that an occupier may revoke the permission at any time, by requiring the visitor to leave the premises. The implied licence applies to members of the public and the police alike, albeit that the business which they may have with the occupier or those present on the premises may differ.

The most common such licence, a majority of this Court in *Halliday v Nevill* observed, relates to the means of access, usually by path or driveway, to a suburban house. If access is unobstructed, the entrance gate unlocked and there is no notice or other indication that entry by visitors is prohibited, "the law will imply a licence in favour of any member of the public to go upon the path or driveway to the entrance of the dwelling for the purpose of lawful communication with, or delivery to, any person in the house." If the implied licence is revoked at any time, the visitor becomes a trespasser if they remain.

KEANE AND EDELMAN JJ: [66] A person who enters the land of another must justify that entry by lawful authority including consent or licence of the person with the right to immediate possession, generally described as the occupier. If a licence to enter is not express then it can be implied from the particular factual circumstances...

[72] On the other hand, a person who enters for one or more of the purposes within an implied licence will not usually be a trespasser even if they have some other purpose that falls outside the scope of the licence: a person's entry to a premises for an authorised purpose "is not made unlawful because he enters with another and alien purpose in mind" ... The realities and incidents of social life do not require the drawing of imperceptible, jurisprudential distinctions based upon whether a purpose within a licence is or is not accompanied by other subjective motivations or purposes that might lie outside the licence ... Of course ... once the invitee acts upon any such motivation in a manner inconsistent with the licence the invitee will become a trespasser...

[74] At any point in time a person is either a trespasser or is not a trespasser in relation to the same land. If a person's licence to be present on land concludes, is exceeded, or is revoked then the person will be a trespasser unless the person has some independent legal authority to be present on the land. Therefore, a person who is not a trespasser upon entry to land can become a trespasser if the purpose of their licence is exhausted, if the licence is revoked, or if the person performs acts that are beyond the scope of their licence...

[79] Like other members of the public, and without any other specific powers, police officers will be trespassers if (i) the sole purpose for their entry onto the premises is outside the scope of any implied licence, (ii) they remain on the land after the licence is revoked, or (iii) they act in a manner inconsistent with the licence...

Victoria Park Racing and Recreation Grounds Co Ltd v Taylor **(1937) 58 CLR 479 (High Court of Australia)**

Facts:

The plaintiff company conducted race meetings for profit on a racecourse it owned in a Sydney suburb. The course was enclosed by a weatherboard fence (largely eleven feet high) to keep the races private, and information about the races — starting positions, scratchings, jockeys, and results — was published only within the course, on notice boards and semaphores. The defendant Taylor owned land across the road, on which a scaffolding platform about sixteen feet high was erected. From that platform the defendant Angles, an employee of the defendant broadcasting company (2UW), could see the whole course and its notice boards, and he broadcast a vivid, contemporaneous description of each race by microphone and land line to the station, which transmitted it to the public. As a result of the broadcasts, patrons who would otherwise have paid for admission stayed away and listened instead, causing loss to the plaintiff. The plaintiff sought injunctions, its principal claim being that the broadcasting constituted a private nuisance interfering with the use and enjoyment of its land.

Decision:

The case was dismissed by a majority (Latham CJ, Dixon and McTiernan JJ; Rich and Evatt JJ dissenting). On the nuisance claim, the majority held that the defendants had not interfered with the plaintiff's use and enjoyment of its land. The essence of private nuisance is interference with the enjoyment of rights arising from the occupation of land; here, the only effect was to make the plaintiff's business less profitable by diverting custom, which was damage flowing from lawful competition, not an interference with any recognised right incident to occupation of land. Critically, the natural rights of an occupier do not include freedom from being overlooked: it is no wrong to look over a neighbour's fence and describe what is seen. The plaintiff's remedy, if it wished to prevent overlooking, was to build a higher fence — not to obtain an injunction. Rich and Evatt JJ dissented, taking the view that the categories of nuisance are not closed and that systematic overlooking and appropriation of the value of the plaintiff's land, for profit, could constitute an actionable nuisance.

Extracts from Reasons:

Latham CJ from 492-493:

The first contention is that the plaintiff's land has been made suitable for a racecourse, that by reason of the action of the defendants it has been deprived of at least some measure of that suitability, and that therefore this is a case of nuisance—an unlawful interference with the use and enjoyment of land. No analogous case has been cited to the court. I agree that the category of nuisance is not closed and that if some new method of interfering with the comfort of persons in the use of land emerges the law may provide a remedy. For example, the increasing use of electricity, with the possibility of the escape of electricity into an adjoining property, has provided a new possible source of interference with the use of land and the law provides a remedy in such a case.

In this case, however, in my opinion, the defendants have not interfered in any way with the use and enjoyment of the plaintiff's land. The effect of their actions is to make the business carried on by the plaintiff less profitable, and they do so by providing a competitive entertainment. It is unnecessary to cite authorities for the proposition that mere competition (certainly if without any motive of injuring the plaintiff) is not a cause of action. The facts are that the racecourse is as suitable as ever it was for use as a racecourse....

I am unable to see that any right of the plaintiff has been violated or any wrong done to him. Any person is entitled to look over the plaintiff's fences and to see what goes on in the plaintiff's land. If the plaintiff desires to prevent this, the plaintiff can erect a higher fence... The defendant does no wrong to the plaintiff by looking at what takes place on the plaintiff's land. Further, he does no wrong to the plaintiff by describing to other persons, to as wide an audience as he can obtain, what takes place on the plaintiff's ground. The court has not been referred to any principle of law which prevents any man from describing anything which he sees anywhere if he does not make defamatory statements, infringe the law as to offensive language, &c., break a contract, or wrongfully reveal confidential information. The defendants did not infringe the law in any of these respects.

Dixon J from 505-510:

The foundation of the plaintiff company's case is no doubt the fact that persons who otherwise would attend race meetings stay away because they listen to the broadcast made by the defendant Angles from the tower overlooking the course. Beginning with the damage thus suffered and with the repetition that may be expected, the plaintiff company says that, unless a justification for causing it exists, the defendants or some of them must be liable, inasmuch as it is their unauthorized acts that inflict the loss. It is said that to look for a definite category or form of action into which to fit the plaintiff's complaint is to reverse the proper order of thought in the present stage of the law's development. In such a case it is for the defendants to point to the ground upon which the law allows them so to interfere with the normal course of the plaintiff's business as to cause damage.

... The law of tort has fallen into great confusion, but, in the main, what acts and omissions result in responsibility and what do not are matters defined by long-established rules of law from which judges ought not wittingly to depart and no light is shed upon a given case by large generalizations about them. We know that, if upon such facts as the present the plaintiff could recover at common law, his cause of action must have its source in an action upon the case and that in such an action, speaking generally, damage was the gist of the action.

... The feature in which the plaintiff finds the wrong of nuisance is the impairment or deprivation of the advantages possessed by the plaintiff's land as a racecourse by means of a non-natural and unusual use of the defendants' land.

This treatment of the case will not, I think, hold water. It may be conceded that interferences of a physical nature, as by fumes, smell and noise, are not the only means of committing a private nuisance. But the essence of the wrong is the detraction from the occupier's enjoyment of the natural rights belonging to, or in the case of easements, of the acquired rights annexed to, the occupation of land. The law fixes those rights. Diversion of custom from a business carried on upon the land may be brought about by noise, fumes, obstruction of the frontage or any other interference with the enjoyment of recognized rights arising from the occupation of property and, if so, it forms a legitimate head of damage recoverable for the wrong; but it is not the wrong itself. The existence or the use of a microphone upon neighbouring land is, of course, no nuisance. If one, who could not see the spectacle, took upon himself to broadcast a fictitious account of the races he might conceivably render himself liable in a form of action in which his falsehood played a part, but he would commit no nuisance. It is the obtaining a view of the premises which is the foundation of the allegation. But English law is, rightly or wrongly, clear that the natural rights of an occupier do not include freedom from the view and inspection of neighbouring occupiers or of other persons who enable themselves to overlook the premises. An occupier of land is at liberty to exclude his neighbour's view by any physical means he can adopt. But while it is no wrongful act on his part to block the prospect from adjacent land, it is no wrongful act on the part of any person on such land to avail himself of what prospect exists or can be obtained. Not only is it lawful on the part of those occupying premises in the vicinity to overlook the land from any natural vantage point, but artificial erections may be made which destroy the privacy existing under natural conditions.

Lord *Chelmsford* said:

"the owner of a house has a right at all times ... to open as many windows in his own house as he pleases. By the exercise of the right he may materially interfere with the comfort and enjoyment of his neighbour; but of this species of injury the law takes no cognizance. It leaves everyone to his self-defence against an annoyance of this description; and the only remedy in the power of the adjoining owner is to build on his own ground, and so to shut out the offensive windows" (*Tapling v Jones* (1865) 11 HLC 290, 317)

When this principle is applied to the plaintiff's case it means, I think, that the essential element upon which it depends is lacking. So far as freedom from view or inspection is a natural or acquired physical characteristic of the site, giving it value for the purpose of the business or pursuit which the plaintiff conducts, it is a characteristic which is not a legally protected interest. It is not a natural right for breach of which a legal remedy is given, either by an action in the nature of nuisance or otherwise. The fact is that the substance of the plaintiff's complaint goes to interference, not with its enjoyment of the land, but with the profitable conduct of its business. ...

In my opinion, the right to exclude the defendants from broadcasting a description of the occurrences they can see upon the plaintiff's land is not given by law. It is not an interest falling within any category which is protected at law or in equity.

Topic 4: Defences to Intentional Torts

X v Sydney Children's Hospital Network (2013) 85 NSWLR 294

Facts: X, a 17-year-old Jehovah's Witness with aggressive Hodgkin's disease, refused consent to a blood transfusion necessary for his chemotherapy to continue. His refusal was supported by his parents.

The hospital obtained Supreme Court orders authorising the transfusion, and X and his parents appealed, arguing that the parens patriae jurisdiction did not extend to a competent "mature minor" and that s 174 of the Care and Protection Act excluded it.

Decision: The Court of Appeal dismissed the appeal, holding that the parens patriae jurisdiction extends to any person under 18 even if they are competent to consent to or refuse treatment, and that s 174 did not abrogate it absent clear words or necessary intendment. The court upheld the trial judge's conclusion that the sanctity of life outweighed respect for X's autonomy and religious beliefs, varying the orders only so they expired on his 18th birthday.

Extracts:
Basten JA

Capacity to refuse consent

12 The general principle of the common law is that non-consensual medical treatment involves an assault, thus constituting both a criminal offence and a tort. That principle of personal inviolability, as noted in Secretary, Department of Health and Community Services v JWB (1992) 175 CLR 218 (*Marion's Case*) at 234, echoes the well-known words of Cardozo J in Schloendorff v Society of New York Hospital, 105 NE 92 (NY Ct App, 1914) at 93:

> "Every human being of adult years and sound mind has a right to determine what shall be done with his own body; and a surgeon who performs an operation without his patient's consent commits an assault."

13 Subject to an exception which will be addressed below, the submissions assumed that a young person under 18 years of age could not give a legally effective consent. Under the general law, such capacity was absent during the disability of infancy, which ceased at the age of 21 years. Statute now provides that a person "is not under the disability of infancy in relation to a civil act in which the person participates when aged eighteen years or upwards"...

14 More specifically, the Act provides that [i]n matters of tort the doctrine of "consent" applies "in the case of a person aged eighteen years or upwards": s 14(1).
...
16 Finally, it is necessary to note s 174 of the Children and Young Persons (Care and Protection) Act 1998 (Care and Protection Act), which, so far as relevant, provides [for Emergency medical treatment]

17 The Care and Protection Act defines child to mean "a person who is under the age of 16 years" and "young person" to mean "a person who is aged 16 years or above but who is under the age of 18 years": s 3.

18 Taking these statutory provisions together, three propositions are apparent. First, there is no express statement of the disability of infancy or the "incapacity of infancy", reference to which may be found in the Property and Contracts Act. On the other hand, certain provisions in that Act refer to a "minor" which covers any person under the age of 18 years: s 6(1).

19 Secondly, the general effect of the Property and Contracts Act was to lower the age at which the disability or incapacity ceased from 21 years to 18 years. However, it was not the case either before or after the commencement of the Property and Contracts Act that acts of persons during their minority were necessarily without legal effect.

20 Thirdly, although s 174 of the Care and Protection Act was limited to treatment that was necessary, as a matter of urgency ... to save ... life or to prevent serious damage to ... health, there are issues raised by the provision **299 which have potentially broader effects. Thus, the applicants argued that s 174(1) identified the limits within which medical treatment, absent consent, was permitted and, by inference, provided that consent was otherwise effective. Further, there appeared to be an inference implicit in subs (3) and subs (4) that in the case of a child only a parent could give effective consent, but that in the case of a young person, that person could give effective consent. The last inference is one which requires elucidation and is addressed below.

21 Without relying on any inference drawn from s 174(3) or s 174(4), the applicants contended that the capacity to consent to or refuse medical treatment arose before a person reached 18 years of age, where he or she demonstrated relevant decision-making competence. The argument derived from the judg ment of the House of Lords in Gillick v West Norfolk and Wisbech Area Health Authority [1986] 1 AC 112. The critical question in that case was whether a girl under the age of 16 could give an effective consent to advice and treatment including medical examination for the purposes of contraception. The question arose in relation to girls who had not attained 16 years of age because, by statute, a minor who had attained the age of 16 years was able to give effective consent to medical treatment: Family Law Reform Act 1969 (UK), s 8(1). The significance of the minor having capacity to give consent was that the practitioner did not need to

obtain consent from her parents; nor did a refusal of parental consent constitute a veto on such medical treatment. Noting the references in *Blackstone's Commentaries* to the different ages at which a child might attain decision-making capacity under the general law, Lord Scarman stated at 186:

> "The underlying principle of the law was exposed by Blackstone and can be seen to have been acknowledged in the case law. It is that parental right yields to the child's right to make his own decisions when he reaches a sufficient understanding and intelligence to be capable of making up his own mind on the matter requiring decision."

22 More specifically, in a passage adopted by the majority in the High Court in Marion's Case, Lord Scarman stated at 188–189:

> "In the light of the foregoing I would hold that as a matter of law the parental right to determine whether or not their minor child below the age of 16 will have medical treatment terminates if and when the child achieves a sufficient understanding and intelligence to enable him or her to understand fully what is proposed. It will be a question of fact whether a child seeking advice has sufficient understanding of what is involved to give a consent valid in law. Until the child achieves the capacity to consent, the parental right to make the decision continues save only in exceptional circumstances."

23 In terms which will be identified below, the trial judge accepted in the present case that the applicant was competent, in this practical sense, to determine whether or not to consent to the proposed treatment. The question at the heart of this case is what flows, as a matter of law, from the principle adopted in Gillick and the factual finding with respect to the applicant.

Parens patriae jurisdiction

24 The primary argument raised on behalf of the applicants was that the parens patriae jurisdiction of the Supreme Court only operated in a case of incompetence, because it permitted the court to stand in the shoes of a person whose consent was required and decide whether his or her welfare required that consent be given or withheld. That being the case, the submission proceeded, if the applicant was competent to give or withhold consent, no **300 consent was required from his parents and the court had no power to override his decision.

25 Gillick itself was not a case dealing with the parens patriae jurisdiction: accordingly, in order to assess the strength of the applicants' submission, it is necessary to look elsewhere.

26 The historical origins of the parens patriae jurisdiction, arising from the feudal right of the English monarch as parent of the country say little about the current exercise of that acknowledged inherent jurisdiction by the Supreme Court: see Peter W Young, Clyde Croft and Megan Louise Smith, On Equity (2009), Sydney, Lawbook Co, at [4.170]–[4.240]. On the other hand, it is well- established that statutes enacted in all Australian jurisdictions for the welfare of children, absent some express language or necessary intendment, do not limit or exclude the operation of the inherent jurisdiction. Thus in Johnson v Director-General of Social Welfare (Victoria) (1976) 135 CLR 92 at 97, Barwick CJ (with the agreement of Stephen and Mason JJ) stated:

> "This Court has been quite emphatic in expressing its view that, if the Parliament wishes to take away from the Court its power of supervising the guardians, and protecting the welfare, of children, it must do so in unambiguous language, in language which is either express or such as inescapably implies that expression of intention on the part of the Parliament … ."

…

45 Principle as well as authority is against acceptance of the applicants' proposed limitation on the scope of the court's jurisdiction. The very concept of a mature minor envisages a fact-finding exercise with respect to a specific young person. That exercise is itself, presumably, undertaken in the parens patriae jurisdiction. Accordingly, the applicants' submissions are best under stood as imposing a limit on the power to grant relief if a particular finding is made, rather than the imposition of a limitation on the jurisdiction of the court.

46 Even a limitation on the power to grant relief is inconsistent with the exercise undertaken in determining that a particular young person is a mature minor. Once it is accepted that the approach adopted in Gillick does not diminish the scope of the parens patriae jurisdiction, it is consistent with the flexibility inherent in that approach that it should provide a basis for a court to mould orders to the specific circumstances of the case, rather than impose a categorical restriction on the availability of relief.

47 For these reasons, and accepting that the trial judge was satisfied that, in a general sense, the applicant was capable of understanding and consenting to or withholding consent from a particular form of treatment, the orders made were nevertheless within power, absent statutory preclusion under s 174 of the Care and Protection Act.

McNamara v Duncan (1971) 26 ALR 584 (ACTSC)

Facts: The plaintiff was playing Australian Rules football when the defendant, an opposing player, struck him on the head with a raised elbow moments after he had kicked the ball away, fracturing his skull and causing permanent disability. He sued in trespass to the person, and the defendant relied on volenti non fit injuria, arguing the blow was the sort of contact a footballer must expect.

Decision: Fox J held the striking was intentional and a serious infringement of the rules, and that a player does not consent to deliberate injury even though it is known such acts may and probably will occur. Judgment was entered for the plaintiff in battery with damages of $6,000.

Extracts:

Fox J (p 587) I have come to the conclusion that the striking of the plaintiff by the defendant was intentional; he meant to do it. I do not suggest that he meant to incapacitate the plaintiff or indeed to cause him any serious injury. ... I suspect that his purpose was to get the plaintiff out of his way, or discourage him from getting in the way. ... What he did can hardly be understood as an act in the ordinary, legitimate, course of a game of football.

The striking was an infringement, a serious infringement, of the rules. The risk of being injured by such an act is not part of the game, if the game is being played according to the rules. But counsel for the defendant says that this sort of thing, even if not within the rules, is bound to happen from time to time, and the plaintiff must be treated as having accepted the risk that it would happen. The thesis is that a little bit of foul play is a common, if not invariable, concomitant of a game of football (or at least of Australian Rules football) and no legal right arises in a player who is injured thereby. ...

It remains to consider the defence of consent...

I do not think it can reasonably be held that the plaintiff consented to receiving a blow such as he received in the present case. It was contrary to the rules and was deliberate. Forcible bodily contact is of course part of Australian Rules football, as it is with some other codes of football, but such contact finds justification in the rules and usages of the game. Winfield on Tort says (at p. 748) in relation to a non-prize fight, "a boxer may consent to accidental fouls, but not to deliberate ones". Street on Torts (at p. 75) deals with the presumed ambit of consent in cases of accidental injury: "A footballer consents to those tackles which the rules permits, and, it is thought, to those tackles contravening the rules where the rule infringed is framed to maintain the skill of the game; but otherwise if his opponent gouges out an eye or perhaps even tackles against the rules and dangerously."...

The American Restatement of the Laws of Torts (2nd ed. 1965) which deals at length with consent in relation to battery, states the following proposition at p. 86: "(b) Taking part in a game: Taking part in a game manifests a willingness to submit to such bodily contacts or restrictions of liberty as are permitted by its rules or usages. Participating in such a game does not manifest consent to contacts which are prohibited by rules or usages of the game if such rules or usages are designed to protect the participants and not merely to secure the better playing of the game as a test of skill. This is true, although the player knows that those with or against whom he is playing are habitual violators of such rules."

Sports and games differ in their objects and in what is expected of the actors. In the game of Australian Rules football, deliberate injury, in the sense of something done solely or principally with a view to causing sensible hurt, is not justified by the rules and usages of the game. Sensible hurt, produced as a result of intentional acts, is on the other hand an inevitable concomitant of ordinary play.

It will have been seen that in the view of the *Restatement* a player is not to be taken as having consented to prohibited acts, even although it is known that they may, and probably will occur. As the present case is concerned with deliberate injury, it is not necessary to inquire whether there are any qualifications to this proposition when the injury is not deliberate. In my view, there is none when the injury was deliberately inflicted, in the sense that I have mentioned. I should say that no evidence has been called to show that injuries from prohibited acts, or acts not within the rules and usages of the game, are more or less common. There is but a vague suggestion that hits similar to that made by the defendant do sometimes occur, but nothing more definite, and no evidence that such acts, or similar acts, are common. Doubtless there is a general reliance upon an assumed judicial knowledge, but even if the act were not deliberate there would seem to be scant basis for holding that the plaintiff should be taken as having consented to receive a blow such as he received.

I am therefore of the opinion that the plaintiff is entitled to succeed....

Southwark London Borough Council v Williams [1971] Ch 734 (Court of Appeal)

Facts: Two homeless families in desperate circumstances made an orderly entry into empty council-owned houses in Southwark, which were among hundreds boarded up awaiting redevelopment.

The council obtained summary possession orders, and the squatters appealed relying on the defence of necessity and the council's duty to house them under s 21 of the National Assistance Act 1948.

Decision: The Court of Appeal unanimously dismissed the appeals, holding that necessity is confined to cases of great and imminent danger to life and does not extend to homelessness or housing need. Lord Denning reasoned that admitting the plea would open a door no man could shut, so the courts must refuse it for the sake of law and order.

Extracts

Lord Denning MR:

There is authority for saying that in case of great and imminent danger, in order to preserve life, the law will permit of an encroachment on private property. That is shown by Mouse's Case (1609) 12 Co.Rep. 63, where the ferryman at Gravesend took 47 passengers into his barge to carry them to London. A great tempest arose and all were in danger. Mouse was one of the passengers. The defendant threw a casket belonging to the plaintiff (Mouse) overboard so as to lighten the ship. Other passengers threw other things. It was proved that, if they had not done so, the passengers would have been drowned. It was held by the whole court "that in case of necessity, for the saving of the lives of the passengers it was lawful for the defendant, being a passenger, to cast the casket of the plaintiff out of the barges ..." The court said it was like the pulling down of a house, in time of fire, to stop it spreading; which has always been held justified pro bono publico.

The doctrine so enunciated must, however, be carefully circumscribed. Else necessity would open the door to many an excuse. It was for this 744reason that it was not admitted in Reg. v. Dudley and Stephens (1884) 14 Q.B.D. 273, where the three shipwrecked sailors, in extreme despair, killed the cabin boy and ate him to save their own lives. They were held guilty of murder. The killing was not justified by necessity. Similarly, when a man, who is starving, enters a house and takes food in order to keep himself alive. Our English law does not admit the defence of necessity. It holds him guilty of larceny. Lord Hale said that "if a person, being under necessity for want of victuals, or clothes, shall upon that account clandestinely, and animo furandi, steal another man's food, it is felony ...": Hale, *Pleas of Crown,* i. 54. The reason is because, if hunger were once allowed to be an excuse for stealing, it would open a way through which all kinds of disorder and lawlessness would pass. So here. If homelessness were once admitted as a defence to trespass, no one's house could be safe. Necessity would open a door which no man could shut. It would not only be those in extreme need who would enter. There would be others who would imagine that they were in need, or would invent a need, so as to gain entry. Each man would say his need was greater than the next man's. The plea would be an excuse for all sorts of wrongdoing. So the courts must, for the sake of law and order, take a firm stand. They must refuse to admit the plea of necessity to the hungry and the homeless: and trust that their distress will be relieved by the charitable and the good.

Applying these principles, it seems to me the circumstances of these squatters are not such as to afford any justification or excuse in law for their entry into these houses.

Edmund Davies LJ:

pg 746...As far as my reading goes, it appears that all the cases where a plea of necessity has succeeded are cases which deal with an urgent situation of imminent peril: for example, the forcible feeding of an obdurate suffragette, as in Leigh v. Gladstone (1909) 26 T.L.R. 139, 142, where Lord Alverstone C.J. spoke of preserving the health and lives of the prisoners who were in the custody of the Crown; or performing an abortion to avert a grave threat to the life, or, at least, to the health of a pregnant young girl who had been ravished in circumstances of great brutality, as in Rex v. Bourne [1939] 1 K.B. 687; or as in the case tried in 1500 where it was said in argument that a person may escape from a burning gaol notwithstanding a statute making prison-breach a felony, "for he is not to be hanged because he would not stay to be burnt." [2] Such cases illustrate the very narrow limits with which the plea of necessity may be invoked. Sad though the circumstances disclosed by these appeals undoubtedly are, they do not in my judgment constitute the sort of emergency to which the plea applies.

I would respectfully echo the doubts expressed by Lord Denning M.R. as to whether section 21 has any application to this case. It appears to me to deal with a situation different from the grievous circumstances with which we are concerned in these appeals, a situation which arises from an emergency. The subsection speaks of temporary accommodation for persons who are in urgent need thereof. The whole structure and wording of the subsection seems to me to deal with an emergency. Unhappily, we are not here dealing with emergencies, but with an obstinate and longstanding state of affairs. No doubt each of the defendants with whom we are concerned is in urgent need of housing accommodation. But I venture to think that the subsection is dealing with cases of dispossession or deprivation of accommodation by such sudden events as a fire, a flood, or something of that kind. Accordingly, while it is not necessary to express a concluded view on the matter, I do not at present regard this as a section 21 case at all.

Finally, even if necessity could be invoked in such circumstances as the present, it could surely at most justify merely an initial entry into premises in such circumstances as those to which I have referred. I do not see how it could possibly be permitted to extend to and authorise continuing in occupation for an indefinite period of time, which was the understandable aim of the appellants when entering these premises. I therefore have to concur with Lord Denning M.R. in holding that the public weal demands that these appeals be dismissed.

Topic 5: Duty of Care

***Grant v Australian Knitting Mills* [1936] AC 85 (Privy Council)**

Facts:

Dr Grant, the appellant, bought woollen underpants from a retailer who had purchased them from the manufacturer, Australian Knitting Mills. He wore them for a day and began to itch; at the end of a week he changed them for another pair, then developed dermatitis so severe that he spent seventeen weeks in hospital. The garments contained free sulphites (a chemical irritant left in through negligence in the manufacturing process) which was a hidden and latent defect that could not be detected by any reasonable examination. Because the garments had been washed by the time of trial, there were evidentiary difficulties about the quantity of sulphites present when the underpants were sold. Dr Grant won at trial, but the High Court held the evidence was insufficient for a safe finding in his favour; he appealed to the Privy Council.

Decision:

The appeal was allowed. The retailer was liable in contract, but as against the manufacturer there was no privity of contract, so liability had to be in tort, the gist of the cause of action being negligence. Applying *Donoghue v Stevenson*, the Privy Council held the manufacturer owed Dr Grant a duty of care. The case fell squarely within Lord Atkin's principle: a manufacturer who sells products intending them to reach the ultimate consumer in the form in which they left him, with no reasonable possibility of intermediate examination, owes the consumer a duty to take reasonable care. The sulphites were a hidden defect like the snail in the opaque bottle; it was immaterial that the garment was worn externally, or that Dr Grant also had a contract claim against the retailer. Their Lordships expressly recognised, however, that they were deciding only on the actual facts before them, and that many difficult problems, qualifying conditions and complications of fact would arise in future cases before the precise limits of the *Donoghue* principle could be defined.

Extracts from Reasons:

LORD WRIGHT (for the Privy Council): Their Lordships, like the judges in the Courts in Australia, will follow that decision, and the only question here can be what that authority decides and whether this case comes within its principles ... Their Lordships think that the principle of the decision is summed up in the words of Lord Atkin: "A manufacturer of products, which he sells in such a form as to show that he intends them to reach the ultimate consumer in the form in which they left him with no reasonable possibility of intermediate examination, and with the knowledge that the absence of reasonable care in the preparation or putting up of the products will result in an injury to the consumer's life or property, owes a duty to the consumer to take that reasonable care."

... It is clear that the decision treats negligence, where there is a duty to take care, as a specific tort in itself, and not simply as an element in some more complex relationship or in some specialized breach of duty, and still less as having any dependence on contract. All that is necessary as a step to establish the tort of actionable negligence is to define the precise relationship from which the duty to take care is to be deduced. It is, however, essential in English law that the duty should be established: the mere fact that a man is injured by another's act gives in itself no cause of action ... if the act involves lack of due care, again no case of actionable negligence will arise unless the duty to be careful exists.

... In Donoghue's case the duty was deduced simply from the facts relied on — namely, that the injured party was one of a class for whose use, in the contemplation and intention of the makers, the article was issued to the world, and the article was used by that party in the state in which it was prepared and issued without it being changed in any way and without there being any warning of, or means of detecting, the hidden danger ... if the term "proximity" is to be applied at all, it can only be in the sense that the want of care and the injury are in essence directly and intimately connected ... "proximity" can only properly be used to exclude any element of remoteness.

... It was argued, but not perhaps very strongly, that Donoghue's case was a case of food or drink to be consumed internally, whereas the pants here were to be worn externally. No distinction, however, can be logically drawn for this purpose between a noxious thing taken internally and a noxious thing applied externally: the garments were made to be worn next the skin: indeed Lord Atkin specifically puts as examples of what is covered by the principle he is enunciating things operating externally, such as "an ointment, a soap, a cleaning fluid or cleaning powder." Mr. Greene, however, sought to distinguish Donoghue's case from the present on the ground that in the former the makers of the ginger-beer had retained "control" over it in the sense that they had placed it in stoppered and sealed bottles, so that it would not be tampered with until it was opened to be drunk, whereas the garments in question were merely put into paper packets ... He contended that ... the mere possibility and not the fact of their condition having been changed was sufficient to distinguish Donoghue's case: there was no "control" because nothing was done by the manufacturers to exclude the possibility of any tampering while the goods were on their way to the user. Their Lordships do not accept that contention. The decision in Donoghue's case did not depend on the bottle being stoppered and sealed: the essential point in this regard was that the article should reach the consumer or user subject to the same defect as it had when it left the manufacturer. That this was true of the garment is in their Lordships' opinion beyond question. At most there might in other cases be a greater difficulty of proof of the fact.

... In their Lordships' opinion it is enough for them to decide this case on its actual facts. No doubt many difficult problems will arise before the precise limits of the principle are defined: many qualifying conditions and many complications of fact may in the future come before the Courts for decision. It is enough now to say that their Lordships hold the present case to come within the principle of

Donoghue's case, and they think that the judgment of the Chief Justice was right in the result and should be restored as against both respondents, and that the appeal should be allowed...

Chapman v Hearse **(1961) 106 CLR 112 (High Court of Australia)**

Facts:

A car driven by the appellant, Chapman, collided from behind with the near side of another vehicle which was about to make a right turn at an intersection near Adelaide. The front vehicle overturned and Chapman was thrown out of his car onto the roadway, where he lay unconscious. Almost immediately, three cars pulled up; the driver of the third vehicle, a Dr Cherry, went to the aid of Chapman.

While Dr Cherry was attending the unconscious man on the road (on a dark, wet night with poor visibility and no one to warn oncoming traffic) he was struck by another car, driven by the respondent Hearse, and suffered injuries from which he died.

The executor of Dr Cherry's estate sued Hearse under the *Wrongs Act 1936–1956* (SA). Hearse alleged contributory negligence by Dr Cherry and joined Chapman as a third party, claiming a contribution from him. The trial judge found Hearse negligent and held Chapman liable to contribute one-fourth of the damages. Chapman appealed against the order for contribution; his appeal was dismissed by the Full Court of the Supreme Court of South Australia, and he appealed to the High Court.

Decision:

The appeal was dismissed. Chapman's liability to contribute depended on whether he would have been liable for the "same damage" at the suit of Dr Cherry's executor. Chapman argued, among other things, that he owed no duty of care to Dr Cherry because the precise sequence of events leading to Dr Cherry's death was not reasonably foreseeable. The Court (Dixon CJ, Kitto, Taylor, Menzies and Windeyer JJ) rejected that argument.

The test for the existence of a duty of care does not require reasonable foreseeability of the precise sequence of events, or the precise manner in which the injury was sustained. It was enough that injury to a class of persons of which Dr Cherry was one might reasonably have been foreseen as a consequence.

Extracts from Reasons:

THE COURT (DIXON CJ, KITTO, TAYLOR, MENZIES AND WINDEYER JJ): But this argument assumes as the test of the existence of a duty of care with respect to Dr Cherry the reasonable foreseeability of the precise sequence of events which led to his death and it was rejected, and rightly rejected, by the Full Court. It is, we think, sufficient in the circumstances of this case to ask whether a consequence of the same general character as that which followed was reasonably foreseeable as one not unlikely to follow a collision between two vehicles on a dark wet night upon a busy highway. In pursuing this inquiry, it is without significance that Dr Cherry was a medical practitioner or that Chapman was deposited on the roadway. What is important to consider is whether a reasonable man might foresee, as the consequence of such a collision, the attendance on the roadway, at some risk to themselves, of persons fulfilling a moral and social duty to render aid to those incapacitated or otherwise injured...

... As Greer LJ said in *Haynes v Harwood* 1 KB 146 at 156: "It is not necessary to show that this particular accident and this particular damage were probable; it is sufficient if the accident is of a class that might well be anticipated as one of the reasonable and probable results of the wrongful act"...

... But one thing is certain and that is that in order to establish the prior existence of a duty of care with respect to a plaintiff subsequently injured as the result of a sequence of events following a defendant's carelessness it is not necessary for the plaintiff to show that the precise manner in which his injuries were sustained was reasonably foreseeable; it is sufficient if it appears that injury to a class of persons of which he was one might reasonably have been foreseen as a consequence..

Topic 6: Duty of Care - Categories

Romeo v Conservation Commission (NT) (1998) 192 CLR 431

Facts: Fifteen year old Nadia Anne Romeo was seriously injured when she and her friend Jacinta Hay fell from the Dripstone Cliffs on to the Casuarina Beach near Darwin at night-time on 24 April 1987. The cliffs and beach under the management and control of the Conservation Commission of the Northern Territory. Both Romeo and Hay were affected by alcohol when they fell.

Romeo sued the Commission alleging negligence in failing to give warning of the presence of the cliff or to erect a fence or other barrier at the edge of the cliff. The trial judge (Angel J) dismissed the action. An appeal to the Court of Appeal (Martin CJ, Mildren and Thomas JJ) was dismissed.

Decision: Toohey, Gaudron, McHugh, Gummow, Kirby and Hayne JJ, held that the Commission was under a duty to persons entering the reserve to take reasonable care to avoid reasonably foreseeable risks of injury and that the risk of someone falling off the cliff was reasonably foreseeable, but (Gaudron and McHugh JJ dissenting) that the Commission was not in breach of its duty of care by failing to erect a fence or other barrier at the edge of the cliff.

Extracts:

Toohey and Gummow JJ

The Duty of Care

48...Angel J correctly identified the source of the duty of care upon the respondent as its control of the Reserve. His Honour distinguished Nagle as involving the failure to warn of a hidden danger when a warning sign would have been an effective deterrent to the plaintiff diving where he did.

49... Angel J ... was clearly influenced by the statement of Dixon J in Aiken v Kingborough Corporation that:

> the public authority in control of ... premises is under an obligation to take reasonable care to prevent injury to such a person through dangers arising from the state or condition of the premises which are not apparent and are not to be avoided by the exercise of ordinary care."

However, that statement must be read in light of the majority judgment in Nagle while that decision stands. As will appear, in light of the majority judgment, the appeal must fail.

In Nagle Brennan J (who was in dissent) ... expressed it in this way:

> The test expressed by Dixon J in Aiken v Kingborough Corporation focuses attention on the nature of the danger itself assessed prior to the event according to the obviousness of the danger and the care ordinarily exercised by the public. In determining in a particular case the measure of the duty of a public authority having control and management of a large area of land used for public enjoyment, the better assessment is likely to be made by reference to the test expressed by Dixon J.

As can be seen from the passage quoted, Brennan J placed emphasis on the nature of the danger itself, assessed before the event according to its obviousness and the care ordinarily exercised by the public. This is not the test of "concealed danger" pleaded by the appellant or referred to in some earlier decisions. It is simply that the care to be expected of members of the public is related to the obviousness of the danger.

Breach of Duty

53 The point from which the appellant fell was not a viewing point except in the sense that visitors used the car park in order to watch sunsets from their cars. It was an obvious part of the cliff, even allowing for the vegetation in the area. And the evidence does not support a conclusion that there was an appearance of a path leading to the edge. If reasonable foreseeability is isolated from any other consideration, there may have been a "risk" of someone falling over the edge of the cliff in the sense used by Mason J in *Wyong Shire Council v Shirt*

> A risk which is not far-fetched or fanciful is real and therefore foreseeable.

But in the present case the risk existed only in the case of someone ignoring the obvious.

54 In putting the matter in that way, there is a danger of drawing in the question of contributory negligence of the plaintiff to what is a consideration of the duty of care on the defendant. For that reason we think it is preferable to approach the matter on the footing that there was a duty of care on the respondent to take any steps that were reasonable to prevent the foreseeable risk becoming an actuality. But reasonable steps did not extend to fencing off or illuminating the edge of a cliff which was about 2 km in length. The relationship of the car park to the rest of the Reserve did not call for special precautions at the cliff face nearby. A sign might serve as a warning to someone unfamiliar with the area. But to someone who was familiar, as the appellant was, a warning sign would serve no purpose...

56 The respondent was under a general duty of care to take reasonable steps to prevent persons entering the Reserve from suffering injury. But the taking of such steps did not extend to fencing off an area of natural beauty where the presence of a cliff was obvious. In other words, there was no breach of the respondent's duty of care in failing to erect a barrier at the cliff edge.

Kirby J

120 The foundation for the Commission's duty of care to the appellant was the statutory power of management and control of the reserve. But the factual circumstances of the case went beyond mere power. This was not a case of unalienated Crown land, left entirely, or virtually entirely, in its natural state. The cliffs were part of a public reserve, which attracted up to half a million visitors a year. Although it would be quite wrong to describe the reserve (as the appellant did) as akin to a suburban park, it was certainly close to the outlying suburbs of Darwin. The cliffs, to the knowledge of the Commission, attracted a proportion of those visiting the reserve. The Commission did not create the ungraded road and carpark as an allurement to people to visit the cliff area, but rather as a means of controlling traffic and limiting damage to the environment. However, these improvements certainly facilitated access to the cliffs by visitors. The positioning of logs at the edge of the carpark was obviously designed to mark the limit of vehicular access in a way that still preserved the natural character of the site. It would have been foreseeable that the logs would have been used by visitors, sitting on them and watching the scenery. It was obvious that visitors would arrive at the reserve and the cliffs of different ages, different visual capacities, different states of sobriety and exhibiting different levels of advertence to their surroundings.

121 Accordingly, the elements of foreseeability and proximity were satisfied in this case. Subject to any special considerations of legal policy deriving, for example, from the fact that the Commission is a public authority with limited resources committed to its discretion, the considerations necessary in law to give rise to a duty of care were all satisfied. But the question remains: what was the scope of that duty and was the Commission in breach of it?

Scope of Duty

122 It is one thing to hold that a person owes a duty of care of some kind to another. But the critical question is commonly the measure or scope of that duty. The failure to distinguish these concepts can only lead to confusion.

123 The ordinary formulation of the common law is that a body such as the Commission must take reasonable care to avoid foreseeable risks of injury to persons entering an area such as the reserve, including the cliffs, as of common right[197]. However, that expression of the duty must be elaborated if it is to be of any practical guidance. The entrant is only entitled to expect the measure of care appropriate to the nature of the land or premises entered and to the relationship which exists between the entrant and the occupier. The measure of the care required will take into account the different ages, capacities, sobriety and advertance of the entrants. While account must be taken of the possibility of inadvertance or negligent conduct on the part of entrants, the occupier is generally entitled to assume that most entrants will take reasonable care for their own safety. For example, it would be neither reasonable nor just to impose upon a body such as the Commission an obligation to erect secure climb-proof fencing along the entire elevated headland of the reserve against the risk of injury suffered by the occasional visitor bent on suicide. In judging the measure of the duty which is owed regard will certainly be had to any particular statutory obligations or powers enjoyed by a public authority. But where, as here, the statutory duties are stated in general and permissive terms, the scope of the duty of care imposed by the common law will be no more than that of reasonable care. Where a risk is obvious to a person exercising reasonable care for his or her own safety, the notion that the occupier must warn the entrant about that risk is neither reasonable nor just. In considering whether the scope of the duty extends, in a case such as the present, to the provision of fencing or a wire barrier, it is not sufficient to evaluate that claim by reference only to the area of the Dripstone Cliffs. An accident of the kind which occurred to the appellant might have occurred at any other elevated promontory in every similar reserve under the control of the Commission to which members of the public had access. The projected scope of the duty must therefore be tested, not solely with the hindsight gained from the happening of the accident to the particular plaintiff but by reference to what it was reasonable to have expected the Commission to have done to respond to foreseeable risks of injury to members of the public generally coming upon any part of the lands under its control which presented similar risks arising out of equivalent conduct...

Tame v NSW; Annetts v Australian Stations (2002) 211 CLR 317

Facts:
Tame**:** A police officer filling in an accident report mistakenly recorded a drunk driver's blood alcohol reading of 0.14 against Mrs Tame, whose reading was in fact, nil. He corrected the error within weeks, but an insurer had already received the uncorrected copy. Over a year later, her solicitor told her about the mistake. She became obsessed with it and developed a psychotic depressive illness, and sued the State for the officer's negligence.

Annetts**:** Mr and Mrs Annetts let their 16 year old son work as a jackaroo only after the employer assured them he would be constantly supervised. Seven weeks later, the employer sent him alone to a remote property. He went missing in the desert, and over four months his parents learned by telephone of his disappearance, the discovery of his bloodstained hat, and finally his death. Both developed psychiatric illness and sued the employer, which argued it owed them no duty of care.

Decision:
Tame: Appeal dismissed. The officer did not owe Mrs Tame a duty of care. The majority reasoned that her psychiatric injury was not reasonably foreseeable.

Annetts: Appeal allowed. The employer owed the parents a duty of care to avoid causing them psychiatric injury. The Court rejected

sudden shock and direct perception as rigid preconditions. There was a pre-existing relationship between the employer and the plaintiffs, the plaintiffs having made inquiries about the arrangements to be made for the care of their son and the employer having given assurances that he would be supervised.

Extracts:
Gummow and Kirby JJ:

Negligence and "nervous shock"

170 The authorities respecting recovery for what has been called "nervous shock" disclose a series of adjustments in the accommodation of conflicting interests which have struggled for legal protection. Writing in 1946, Professor Stone observed that:

> The apparent anomalies and illogicalities of this subject are overt signs of a substantial clash of interests. Full support of the claim to nervous integrity might not only subject defendants to being mulcted in damages on false claims, thus infringing their interests of substance. It would also tend to inhibit freedom of action generally, thus prejudicing claims to free motion and locomotion.

171 Of course, much depends upon the nature and scope of the identified interests. In *Bourhill v Young*, Lord Wright spoke of the interest of the plaintiff in that case as "in her own bodily security". The identification by Professor Stone of the interest in "nervous integrity" was intended, as appears from the passages in the text that follow, to identify an interest in the avoidance of "nervous disorders" and "nervous injury". In *Mount Isa Mines Ltd v Pusey*, Windeyer J observed:

> Sorrow does not sound in damages. A plaintiff in an action of negligence cannot recover damages for a 'shock', however grievous, which was no more than an immediate emotional response to a distressing experience sudden, severe and saddening. It is, however, today a known medical fact that severe emotional distress can be the starting point of a lasting disorder of mind or body, some form of psychoneurosis or a psychosomatic illness. For that, if it be the result of a tortious act, damages may be had.

172... in this country, England and other common law jurisdictions, the starting point, as exemplified by the statement by Windeyer J in *Pusey*, has been the recognition in plaintiffs of a more narrowly defined interest...

177 The term "shock" first was used in this universe of discourse over a century ago to emphasise the need for accompanying physical injury. More recently, it has been used to indicate another restriction, the need for a "sudden perception" by the plaintiffs as is illustrated by the judgments now under appeal.

179... At each step, attempts were made to posit limitations which it was expected would minimise false claims and avoid indeterminate liability...

183 Advances in the capacity of medicine objectively to distinguish the genuine from the spurious, and renewed attention to the need to establish breach, causation and a recognisable psychiatric illness that is not too remote, indicate the need for re-accommodation of the competing interests which are in play in "nervous shock" cases...

184 Of course, a finding that a duty of care operates in a particular situation may advance interests in deterring wrongdoing or spreading loss, but the recognition that those interests exist does not dictate any particular holding with respect to the existence of a duty of care...

185 A fundamental objective of the law of negligence is the promotion of reasonable conduct that averts foreseeable harm. In part, this explains why a significant measure of control in the legal or practical sense over the relevant risk is important in identifying cases where a duty of care arises. Further, it is the assessment, necessarily fluid, respecting reasonableness of conduct that reconciles the plaintiff's interest in protection from harm with the defendant's interest in freedom of action....

Control mechanisms

186... as in cases respecting the liability in negligence of public authorities, the recovery of damages for economic losses resulting from negligent misstatement, and the recovery of economic loss in the absence of physical injury to person or property, various "control mechanisms" have been postulated to restrict liability in negligence for psychiatric illness not consequent upon physical harm. The control mechanisms reflect a perceived need to keep liability within practicable bounds.

187 This Court is presently concerned with three control mechanisms which influenced the intermediate appellate courts. They are (i) the requirement that liability for psychiatric harm be assessed by reference to a hypothetical person of "normal fortitude", (ii) the requirement that the psychiatric injury be caused by a "sudden shock", and (iii) the requirement that a plaintiff "directly perceive" a distressing phenomenon or its "immediate aftermath". It is an objection to the adoption of these rules that this would substitute for the consideration in the particular case of the general requirements of duty of care, reasonable foreseeability, causation and remoteness of damage, notions which would foreshorten inquiry into those matters by the imposition of absolutes with no necessary relation to basic principles. It will be necessary to refer again to that objection at several stages later in these reasons, under the headings "Psychiatric harm", "Sudden shock" and "Direct perception and immediate aftermath".

188 It should be decided here that the three control mechanisms listed above are unsound...

189 None of the three control mechanisms has been accepted by this Court as a pre-condition to liability for negligently inflicted psychiatric harm. The first of the mechanisms, the standard of "normal fortitude", is not a free-standing criterion of liability, but a postulate which assists in the assessment, at the stage of breach, of the reasonable foreseeability of the risk of psychiatric harm. Further,

for the reasons that follow, the common law of Australia recognises neither the second nor third, "sudden shock" and "direct perception", as pre-conditions to the recovery of damages for negligently inflicted psychiatric harm.

190 As will become apparent, the requirements of "sudden shock" and "direct perception" of a distressing phenomenon or its "immediate aftermath" have operated in an arbitrary and capricious manner. Unprincipled distinctions and artificial mechanisms of this type bring the law into disrepute. In a similar manner to the law respecting the "immunity" from liability in negligence of "highway authorities" prior to this Court's decision in *Brodie v Singleton Shire Council*, the "nervous shock" cases predicate elusive distinctions with no root in principle and which are foreign to the merits of the litigation.

191 Moreover, the emergence of a coherent body of case law is impeded, not assisted, by such a fixed system of categories. Rigid distinctions of the type required by the "direct perception" rule inevitably generate exceptions and new categories, like the "immediate aftermath" qualification, as the inadequacies of the recognised categories become apparent and "hard cases" are accommodated. The old rule that "nervous shock" sounded in damages only where it arose from a reasonable fear of immediate personal injury to oneself, and its subsequent relaxation to permit recovery where the plaintiff feared for the safety of another, illustrates the point. As the categories and exceptions proliferate, the reasoning and outcomes in the cases become increasingly detached from the rationale supporting the cause of action.

Psychiatric harm

192 Before turning to consider each of the postulated control mechanisms, it is appropriate to identify the justification that is said to support them. At base, the justification lies in a perceived distinction between psychiatric and physical harm. Authorities have isolated four principal reasons said to warrant different treatment of the two categories of case. These are (i) that psychiatric harm is less objectively observable than physical injury and is therefore more likely to be trivial or fabricated and is more captive to shifting medical theories and conflicting expert evidence, (ii) that litigation in respect of purely psychiatric harm is likely to operate as an unconscious disincentive to rehabilitation, (iii) that permitting full recovery for purely psychiatric harm risks indeterminate liability and greatly increases the class of persons who may recover, and (iv) that liability for purely psychiatric harm may impose an unreasonable or disproportionate burden on defendants. This final concern is reflected in the statement that:

> [i]t would be an entirely unreasonable burden on all human activity if the defendant who has endangered one person were to be compelled to pay for the lacerated feelings of every other person disturbed by reason of it, including every bystander shocked at an accident, and every distant relative of the person injured, as well as all his friends.

193 Several points may be made here. First, the concerns underlying propositions (i), (ii) and (iv) apply, to varying degrees, in cases of purely physical injury, yet it is not suggested that they justify denying a duty of care in that category of case. Secondly, many of these concerns recede if full force is given to the distinction between emotional distress and a recognisable psychiatric illness. In the judgment of four members of the New Zealand Court of Appeal in *van Soest v Residual Health Management Unit*, it was seen as significant that psychiatry distinguished between mere mental distress and psychiatric illness, albeit the distinction was one of degree rather than kind and might change with advances in medical knowledge. It has been noted earlier in these reasons that the common law in many United States jurisdictions has developed differently. In Australia, as in England, Canada and New Zealand, a plaintiff who is unable affirmatively to establish the existence of a recognisable psychiatric illness is not entitled to recover. Grief and sorrow are among the "ordinary and inevitable incidents of life"; the very universality of those emotions denies to them the character of compensable loss under the tort of negligence. Fright, distress or embarrassment, without more, will not ground an action in negligence. Emotional harm of that nature may be evanescent or trivial.

194...Properly understood, the requirement to establish a recognisable psychiatric illness reduces the scope for indeterminate liability or increased litigation. It restricts recovery to those disorders which are capable of objective determination. To permit recovery for recognisable psychiatric illnesses, but not for other forms of emotional disturbance, is to posit a distinction grounded in principle rather than pragmatism, and one that is illuminated by professional medical opinion rather than fixed purely by idiosyncratic judicial perception. Doubts as to adequacy of proof (which are particularly acute in jurisdictions where civil juries are retained) are to be answered not by the denial of a remedy in all cases of mental harm because some claims may be false, but by the insistence of appellate courts upon the observance at trial of principles and rules which control adjudication of disputed issues.

195 Thirdly, the law of negligence already supplies its own limiting devices...The asserted grounds for treating psychiatric harm as distinctly different from physical injury do not provide a cogent basis for the erection of exclusionary rules that operate in respect of the former but not the latter. To the extent that any of these concerns are not adequately met in particular categories of case by the operation of the ordinary principles of negligence, they may be accommodated, in the manner explained later in these reasons, by defining the scope of the duty of care with reference to values which the law protects...

Normal fortitude

197 The attention given to this notion by both the Court of Appeal in *Tame* and the Full Court in *Annetts* may suggest that a plaintiff has no action unless he or she be an individual of "normal fortitude". The concept is said to derive from a passage in the speech of Lord Wright in *Bourhill v Young*. However, it is made plain in that passage that the attention to the notional person of "normal fortitude" is the application of a hypothetical standard that assists the assessment of the reasonable foreseeability of harm, not an independent pre-condition or bar to recovery.

199... it does not follow that it is a pre-condition to recovery in any action for negligently inflicted psychiatric harm that the plaintiff be a person of "normal" emotional or psychological fortitude or, if peculiarly susceptible, that the defendant know or ought to have known of that susceptibility. The statement by Spigelman CJ in the Court of Appeal in *Tame* that a plaintiff "cannot recover for 'pure' psychiatric

damage unless a person of 'normal fortitude' would suffer psychiatric damage by the negligent act or omission" should not be accepted. Windeyer J observed in *Pusey* that the notion of a "normal" emotional susceptibility, in a population of diverse susceptibilities, is imprecise and artificial. The imprecision in the concept renders it inappropriate as an absolute bar to recovery. Windeyer J also pointed out that the contrary view, with its attention to "normal fortitude" as a condition of liability, did not stand well with the so-called "egg-shell skull" rule in relation to the assessment of damages for physical harm.

200 Analysis by the courts may assist in assessing the reasonable foreseeability of the relevant risk. The criterion is one of *reasonable* foreseeability. Liability is imposed for consequences which the defendant, judged by the standard of the reasonable person, ought to have foreseen...

201 However, the concept of "normal fortitude" should not distract attention from the central inquiry, which is whether, in all the circumstances, the risk of the plaintiff sustaining a recognisable psychiatric illness was reasonably foreseeable, in the sense that the risk was not far-fetched or fanciful. It may be that, in some circumstances, the risk of a recognisable psychiatric illness to a person who falls outside the notion of "normal fortitude" is nonetheless not far-fetched or fanciful. If that is so, it is then for the tribunal of fact to determine what a reasonable person would do by way of response to the risk, in the manner indicated in *Wyong Shire Council v Shirt*. Where the plaintiff's response to the defendant's conduct is so extreme or idiosyncratic as to render the risk of that response far-fetched or fanciful, the law does not require the defendant to guard against it. Thus, as Pound observed in 1915, where a putative tortfeasor "so far as he could *reasonably* foresee, does nothing that would work an injury, the individual interest of the unduly sensitive or abnormally nervous must give way".

203...it is not necessary that the particular type of disorder that eventuated be reasonably foreseeable; it is sufficient that the class of injury, psychiatric illness, was foreseeable as a possible consequence of the defendant's conduct. So much follows from the proposition that liability does not depend upon "the capacity of a reasonable man to foresee damage of a precise and particular character or upon his capacity to foresee the precise events leading to the damage complained of". If liability be established by application of these criteria, then, consistently with the approach tentatively favoured by Windeyer J in *Pusey*, the "egg-shell skull" rule applies to the assessment of damages.

Sudden shock

204 Windeyer J observed in *Pusey* that the term "nervous shock" is apt to mislead. Thereafter, in *McLoughlin v O'Brian*, Lord Bridge of Harwich said its use was a quaint persistence by lawyers. The repetition of such terminology in the authorities, and the ingrained habits of thought to which it has led, indicates the need for care "lest words used in one case become tyrants over the facts of another". "Nervous shock" operates as a common lawyer's shorthand for the categories of psychiatric harm which are compensable under the tort of negligence. The content of those categories alters with the development of psychiatric knowledge. Terminology should not impede appreciation of the nature and scope of psychiatric harm which may be proved by appropriate evidence and against which the tort offers protection...

207... a "sudden shock" requirement would have no root in principle and therefore would be arbitrary and inconsistent in application. As a growing body of criticism has pointed out, individuals may sustain recognisable psychiatric illnesses without any particular "sudden shock"... The pragmatic justifications for the rule are unconvincing, for the reasons given earlier at [192] to [196]...

208 Assuming that the other elements of the cause of action have been made out, liability in negligence, for which damage is the gist of the action, should turn on proof of a recognisable psychiatric disorder, not on the aetiology of that disorder. Yet, on the present state of authority in the English Court of Appeal, a parent who observed an adult child deteriorate over 14 days whilst being negligently treated in the defendant hospital, and then die, must be denied recovery in respect of the negligence of the hospital because the parent's psychiatric harm was not induced by "shock" and the death when it came was "expected"...

210 Cases of protracted suffering, as opposed to "sudden shock", may raise difficult issues of causation and remoteness of damage. Difficulties of that kind are more appropriately analysed with reference to the principles of causation and remoteness, not through an absolute denial of duty...

213 The requirement to establish "sudden shock" should not be accepted as a pre-condition for recovery in cases of negligently inflicted psychiatric illness.

Direct perception and immediate aftermath

221 A rule that renders liability in negligence for psychiatric harm conditional on the geographic or temporal distance of the plaintiff from the distressing phenomenon, or on the means by which the plaintiff acquires knowledge of that phenomenon, is apt to produce arbitrary outcomes and to exclude meritorious claims... The rule is also disjoined from the realities of modern telecommunications which have developed greatly since this control factor was propounded...

222 It has been said that the more significant causal factor in cases of psychiatric illness is not the "direct perception" of the event, or the precise manner in which the horror of the event is conveyed, but the relationship between the plaintiff and the accident victim. Yet the case law now under consideration produces the result that a plaintiff who did not view her daughter's abduction or murder, or view her mutilated body until six to seven days after her death, is outside the "immediate aftermath" and is unable, on that basis alone, to bring a claim in negligence against the defendant health authority for its alleged failure adequately to diagnose and treat the sexual offender who committed the crimes. The English Court of Appeal so decided in *Palmer v Tees Health Authority*. Assuming that otherwise liability could be established, this exclusion of recovery is obviously arbitrary. It lacks apparent logic or legal merit...

225 Distance in time and space from a distressing phenomenon, and means of communication or acquisition of knowledge concerning that phenomenon, may be relevant to assessing reasonable foreseeability, causation and remoteness of damage in a common law action for negligently inflicted psychiatric illness. But they are not themselves decisive of liability. To reason otherwise is to transform a factor that favours finding a duty of care in some cases into a general pre-requisite for a duty in all cases. This carries with it the risk of attribution of disproportionate significance to what may be no more than inconsequential circumstances.

Bearers of bad tidings

228 the loved ones of a person who has been killed, injured or put in peril ordinarily have an interest in being told promptly of that circumstance and the law encourages the free and prompt supply of the relevant information to those persons. It is for this reason that, in the absence of a malign intention, no action lies against the bearer of bad news for psychiatric harm caused by the manner in which the news is conveyed or, if the news be true, for psychiatric harm caused by the fact of its conveyance[95]. The discharge of the responsibility to impart bad news fully and frankly would be inhibited by the imposition in those circumstances of a duty of care to avoid causing distress to the recipient of the news. There can be no legal duty to break bad news gently. This is so even if degrees of tact and diplomacy were capable of objective identification and assessment, which manifestly they are not. Neither carelessness nor insensitivity in presentation will found an action in negligence against the messenger...

The outcome in *Tame v New South Wales*

231 It is unlikely that an investigating police officer owes a duty of care to a person whose conduct is under investigation. Such a duty would appear to be inconsistent with the police officer's duty, ultimately based in the statutory framework and anterior common law by which the relevant police service is established and maintained[98], fully to investigate the conduct in question[99]. Counsel for Mrs Tame submitted that Mrs Tame's conduct was not under investigation at the time the Traffic Collision Report was completed. It was said that Mrs Tame was an accident victim in respect of whom there was no suspicion of any criminal offence. However, it is unnecessary to pursue that question, because, for the reasons that follow, Mrs Tame's action fails at the outset.

233 it was not reasonably foreseeable that a person in the position of Mrs Tame would sustain a recognisable psychiatric illness from a clerical error which she was told was a mistake that had been rectified and in respect of which she received a formal apology. The appellant's reaction was extreme and idiosyncratic. The risk of such a reaction was far-fetched or fanciful and, in the manner indicated in *Wyong Shire Council v Shirt*, was not one which the law of negligence required a reasonable person to avoid.

235 The appeal in *Tame* should be dismissed with costs.

The outcome in *Annetts v Australian Stations Pty Ltd*

236 The Full Court erred in failing to apply the ordinary principles of the tort of negligence, unhindered by artificial constrictions based on the circumstance that the illness for which redress was sought was purely psychiatric. In particular, neither the lack of the applicants' direct perception of their son's death or its immediate aftermath, nor the circumstance that the applicants may not have sustained a "sudden shock", is fatal to the applicants' claims. In accordance with the ordinary principles of negligence applied to the assumed facts, the respondent owed the applicants a duty of care...

239 In the present case, the applicants sought and obtained from the respondent assurances that James would be appropriately supervised. The respondent undertook specifically to act to minimise the risk of harm to James and, by inference, to minimise the risk of psychiatric injury to the applicants. In those circumstances, the recognition of a duty of care does not raise the prospect of an intolerably large or indeterminate class of potential plaintiffs.

240 The applicants had no way of protecting themselves against the risk of psychiatric harm that eventuated. In that regard, nothing turns upon which of the situations postulated by Ipp J in the Full Court as to the time that harm was sustained may be established at trial of the remaining issues in the action. The control over the risk of harm to James, and the risk of consequent psychiatric harm to the applicants, was held to a significant, perhaps exclusive, degree by the respondent. It controlled the conditions under which James worked.

241 Is there..., any real question of inconsistency between the existence of a duty of care to the parents of James and the legitimate pursuit by the respondent of its business interests? The answer is in the negative. It is likely that the respondent's duty of care to the applicants to exercise reasonable care to avoid causing them psychiatric injury with respect to James' death in the course of his employment by it was, at most, co-extensive with the tortious and express or implied contractual duties that it had owed to James directly as his employer.

242 The application for special leave in *Annetts* should be granted and the appeal allowed.

Wicks v SRA (NSW); Sheehan v SRA (NSW) (2010) 241 CLR 60

Facts: On a morning in late January 2003, a passenger train operated by the State Rail Authority of New South Wales (the SRA), derailed near Waterfall. Seven people were killed and many others were injured. Wicks and Sheehan were police officers who attended scene of train derailment in which several people killed and many injured.

Wicks and Sheehan commenced proceedings in the Supreme Court of New South Wales, claiming that they had suffered psychiatric injuries. Malpass AsJ entered judgment in favour of the SRA on the basis that Wicks and Sheehan did not witness at the scene victims of the derailment being killed, injured or put in peril within the meaning of s 30(2) of the Civil Liability Act 2002 (NSW) Appeals to the Court

of Appeal of the Supreme Court of New South Wales (Beazley, Giles and McColl JJA) against those judgments were dismissed.

Decision: The Court held that Section 30(2)(a) of the Civil Liability Act does not only apply to cases which occur in an instant. The consequences of the derailment emerged over time. During the time when Wicks and Sheehan were present, victims were still being injured and put in peril. Therefore, it would be open to find that Wicks and Sheehan witnessed at the scene victims being injured or put in peril: at [43]–[52]. The Court held that a plaintiff does not need to demonstrate a psychiatric injury caused by observing a particular victim being killed, injured or put in peril from the purposes of s 30 of the Civil Liability Act: at [53]–[54].

Extracts

French CJ, Gummow, Hayne, Heydon, Crennan, Kiefel and Bell JJ

The determinative issue

1...All parties accept that resolution of this issue turns on the construction and application of Pt 3 (ss 27–33) of the *Civil Liability Act* 2002 (NSW) ("the Civil Liability Act"). The issue should be resolved in favour of the appellants, and each matter remitted to the Court of Appeal of New South Wales for its further consideration...

12 The outcome of the litigation was treated, both at trial and on appeal to the Court of Appeal, as turning upon whether Mr Wicks and Mr Sheehan "witnessed, at the scene, the victim being killed, injured or put in peril" within the meaning of s 30(2)(a). Both Malpass AsJ and the Court of Appeal concluded that neither appellant witnessed a victim or victims of the derailment "being killed, injured or put in peril".

13 However, s 30(2) is drawn in negative terms, using the word "unless" to indicate the operation of the sub-section as an exception to, or reservation from, what otherwise would be the entitlement of the plaintiff. This use of "unless" appears also in ss 31, 32 and 33, to which further reference will be made...

15...To begin inquiries by asking whether s 30(2)(a) of the Civil Liability Act is engaged, without first deciding whether State Rail owed a duty to each appellant to take reasonable care not to cause him psychiatric injury, was to omit consideration of an important anterior question. To examine the content of the limitation on liability provided by s 30 without a proper understanding of the provisions affecting duty runs the risk of reading the limitation divorced from its statutory context.

Part 3 of the Civil Liability Act

16 Part 3 of the Civil Liability Act is entitled "Mental harm". That term is defined in s 27 to mean "impairment of a person's mental condition".

17 Section 28(1) provides that Pt 3, *except s 29*, "applies to any claim for damages for mental harm resulting from negligence, regardless of whether the claim is brought in tort, in contract, under statute or otherwise". Section 28(2) provides that s 29 "applies to a claim for damages in any civil proceedings". Section 29 provides that: "In any action for personal injury, the plaintiff is not prevented from recovering damages merely because the personal injury arose wholly or in part from mental or nervous shock." The phrase "mental or nervous shock" is not defined.

18 Neither the purpose of s 29, nor the reason for the differential treatment of that provision in the specification by s 28 of the application of Pt 3, is immediately apparent. It need not be decided whether s 29 applies to these cases. For the purposes of these matters, it is necessary to notice only that, by operation of s 28(1), the other provisions of Pt 3 apply to any claim for damages for mental harm resulting from negligence, and thus apply to each appellant's claim against State Rail.

19... The claims made by both Mr Wicks and Mr Sheehan are claims for damages for pure mental harm...

20 Section 31 provides that: "There is no liability to pay damages for pure mental harm resulting from negligence unless the harm consists of a recognised psychiatric illness." As noted earlier, no finding was made at trial, or on appeal, whether either Mr Wicks or Mr Sheehan suffers "a recognised psychiatric illness", or whether the negligence of State Rail was a cause of either appellant suffering such an illness...

22 Because s 32 defines or controls what otherwise would be a duty of care arising at common law, it falls for consideration before the limitation upon entitlement to damages imposed by s 30(2). Consideration of the operation of s 32 (in particular sub-ss (1) and (2)) must begin from the observation that neither s 32 itself, nor any other provision of the Civil Liability Act (whether in Pt 3 or elsewhere), identifies positively when a duty of care to another person to take care not to cause mental harm to that other should be found to exist. Rather, like s 30(2), s 32(1) is cast negatively. It provides that a duty is *not* to be found unless a condition is satisfied. The necessary condition for establishment of a duty of care, identified by s 32(1), is that the defendant ought to have foreseen that a person of normal fortitude might, in the circumstances of the case, suffer a recognised psychiatric illness if reasonable care were not taken.

23 The determination of whether the defendant ought to have foreseen mental injury to a person of normal fortitude must be made with regard to "the circumstances of the case". Section 32(2) identifies four kinds of circumstance to which regard should be had: whether the mental harm was caused by sudden shock, whether there was "witness[ing], at the scene," of certain types of event, what was the relationship between plaintiff and victim, and whether there was a relationship between plaintiff and defendant. But s 32 does not prescribe any particular consequence as following from the presence or absence of any or all of those circumstances.

24 Section 32, taking the form it does, must be understood against the background provided by the common law of negligence in relation to psychiatric injury as stated by this Court in *Tame v New South Wales*...

26 In part, s 32 of the Civil Liability Act reflects the state of the common law identified in *Tame*. Consistent with what was decided in *Tame*, s 32 assumes that foreseeability is the central determinant of duty of care. Consistent with *Tame*[10], "shocking event", and the existence and nature of any connection between plaintiff and victim and between plaintiff and defendant, are considerations relevant to foreseeability, but none is to be treated as a condition necessary to finding a duty of care. But contrary to what was decided in *Tame*, s 32 provides that a duty of care is not to be found unless the defendant ought to have foreseen that a person of normal fortitude might, in the circumstances of the case, suffer a recognised psychiatric illness.

27 For present purposes, there are three important features of s 32. First, "sudden shock" (the expression used in s 32(2)(a)) is no more than one of several circumstances that bear upon whether a defendant "ought to have foreseen that a person of normal fortitude might, in the circumstances of the case, suffer a recognised psychiatric illness if reasonable care were not taken". The occurrence of "sudden shock" is neither a necessary nor a sufficient condition for a finding that a defendant owed a duty to take reasonable care not to cause a plaintiff pure mental harm.

28 Secondly, witnessing, at the scene, a person being killed, injured or put in peril is also but one of the circumstances that bear upon the central question of foreseeability. Witnessing, of the kind described, is neither a necessary nor a sufficient condition for finding a duty of care.

29 Thirdly, the focus of s 32 is "mental harm" and "a recognised psychiatric illness", not mental or nervous shock. Section 32 does not use the expression "mental or nervous shock". Yet, as noted earlier, the phrase "mental or nervous shock" appears in s 29 of the Civil Liability Act, and in s 30(1), the provision which determines whether s 30 is engaged. Section 30 applies to the liability of a person (the defendant) for pure mental harm to a person (the plaintiff) "arising wholly or partly from mental or nervous shock" in connection with another person (the victim) being killed, injured or put in peril by the act or omission of the defendant.

30 The phrase "mental or nervous shock" (as used in both ss 29 and 30) doubtlessly has a meaning different from "sudden shock" (the phrase used in s 32(2)(a)). The expression "mental or nervous shock" may be understood as referring to a consequence, and "sudden shock" may be understood as referring to an event or a cause. But the notion of "shock", in the sense of a "sudden and disturbing impression on the mind or feelings; usually, one produced by some unwelcome occurrence or perception, by pain, grief, or violent emotion ([occasionally] joy), and tending to occasion lasting depression or loss of composure", is central to both expressions.

31 Because neither "sudden shock", nor witnessing a person being killed, injured or put in peril, is a necessary condition for finding a duty to take reasonable care not to cause mental harm to another, s 30 will be engaged in only some cases where a relevant duty of care is found to exist. As s 30(1) makes plain, s 30 will be engaged only where the claim is for "pure mental harm", where the claim is alleged to arise "wholly or partly from mental or nervous shock", and where the claim is alleged to arise from shock in connection with "another person ... being killed, injured or put in peril by the act or omission of the defendant".

32 In considering the application of Pt 3 it would ordinarily be desirable to begin by determining whether State Rail owed the appellants a relevant duty of care.

Duty of care?

33 ...To resolve this question would require consideration of whether it was reasonably foreseeable that a rescuer attending a train accident of the kind that might result from State Rail's negligence (in which there might be many serious casualties and much destruction of property) might suffer recognisable psychiatric injury as a result of his experiences at the scene... The question of foreseeability is to be posed in these terms because it must be judged before the accident happened.

34 Any finding at first instance that there was no singular shocking event encountered by either Mr Wicks or Mr Sheehan would not be determinative of the issue of foreseeability and it would not preclude a conclusion that a duty of care was owed. If Malpass AsJ made such a finding (which is itself a doubtful proposition) the finding would seem, on the face of the matter, not to be consistent with the description given in evidence of the scene and the events to which the appellants were exposed at the site of the accident.

35 Because, however, both parties submitted that this Court should not decide the issue of duty of care, these are not issues that should now be decided. The issue of duty of care should be remitted for consideration by the Court of Appeal.

36 Assuming that State Rail did owe Mr Wicks and Mr Sheehan a duty to take reasonable care not to cause mental harm, was s 30(2) engaged? That turns on whether the claims of the appellants were claims alleged to arise "wholly or partly from mental or nervous shock in connection with another person ... being killed, injured or put in peril" by the negligence of State Rail. The phrase must be construed as a whole. It is, however, convenient to begin by noticing some particular matters about one aspect of it: the reference to "shock" in the composite expression "mental or nervous shock".

"Shock"?

37 There can be little doubt that those who came upon the scene of the derailment were confronted with a scene that would cause a "sudden and disturbing impression on the mind or feelings". But it would be wrong to attempt to confine the "shock" that each rescuer suffered to what he perceived on first arriving at the scene. The sudden and disturbing impressions on the minds or feelings of the rescuers necessarily continued as each took in more of the scene, and set about his tasks. Contrary to what appeared to be an unexpressed premise for much of the submissions on behalf of State Rail, the event capable of causing a shock to observers did not finish

when the train came to rest as a twisted collection of carriages. The "shock" which caused a sudden and disturbing impression on the minds and feelings of others was not confined to whatever may have happened, or may have been experienced, in the period between the carriages of the train leaving the tracks and stopping. Rather, the consequences, which each appellant alleged he suffered as a result of what happened on that day, were said to follow from some or all of the series of shocking experiences to which he was exposed at the scene.

38 The claim of each appellant can, then, be said to be a claim arising wholly or partly from (a series of) mental or nervous shock(s). Were they claims arising from mental or nervous shock in connection with another person being killed, injured or put in peril by the negligence of State Rail?

39 The course of argument of all parties, both at trial and in the Court of Appeal, assumed that the claim of each appellant was to be characterised in this way. That assumption depended upon treating each appellant's claims as being that his exposure to the accident scene, while the victims of the accident were still at the scene, amounted to a form of mental or nervous shock in connection with another being killed, injured or put in peril. Only if that were so could s 30(2)(a) be engaged. Did the appellants witness, at the scene, another person or other persons being killed, injured or put in peril?...

"Being killed, injured or put in peril"

42 The expression "being killed, injured or put in peril" is used in s 30(1) as well as in s 30(2)(a). The evident intention of s 30(2) is to create a particular subset of cases that fall within the general description of claims "for pure mental harm ... arising wholly or partly from mental or nervous shock in connection with another person ... being killed, injured or put in peril". But the definitions of both the general class, and the particular subset created by s 30(2), hinge about another *being* killed, injured or put in peril. The general class is identified by reference to shock *in connection with* another being killed, injured or put in peril. The subset is fixed by an "unless" clause. The alternative conditions thus fixed, as necessary for membership of the subset, are first, that the plaintiff *witnessed*, at the scene, the victim being killed, injured or put in peril, or second, that the plaintiff is a close member of the family of the victim.

43 Although both sub-s (1) and sub-s (2) use the phrase "being killed, injured or put in peril", sub-s (1) applies to claims for pure mental harm arising wholly or partly from mental or nervous shock in connection with that event (another being killed, injured or put in peril); sub-s (2) requires that the plaintiff either witnessed that event or was a close relative of the victim. The reference in sub-s (1) to the event must be read as referring to an event that may (but need not) have been complete before the suffering of nervous or mental shock. By contrast, because sub-s (2)(a) requires witnessing of the event at the scene, it must be read as directing attention to an event that was happening while the plaintiff "witnessed" it.

44 It would not be right, however, to read s 30, or s 30(2)(a) in particular, as assuming that all cases of death, injury or being put in peril are events that begin and end in an instant, or even that they are events that necessarily occupy only a time that is measured in minutes. No doubt there are such cases. But there are cases where death, or injury, or being put in peril takes place over an extended period. This was such a case, at least in so far as reference is made to victims being injured or put in peril.

45 The consequences of the derailment took time to play out. Some aboard the train were killed instantly. But even if all of the deaths were instantaneous (or nearly so), not all the injuries sustained by those on the train were suffered during the process of derailment. And the perils to which living passengers were subjected as a result of the negligence of State Rail did not end when the carriages came to rest.

46 Most, if not all, who were injured suffered physical trauma during the process of derailment. It may readily be inferred that some who suffered physical trauma in the derailment suffered further injury as they were removed from the wrecked carriages. That inference follows from the fact that some were trapped in the wreckage. It would be very surprising if each was extricated without further harm.

47 Further, it may be readily inferred that many who were on the train suffered psychiatric injuries as a result of what happened to them in the derailment and at the scene. The process of their suffering such an injury was not over when Mr Wicks and Mr Sheehan arrived. That is why each told of the shocked reactions of passengers they tried to help. That is why each did what he could to take the injured to safety looking straight ahead lest the injured see the broken body of one or more of those who had been killed. As they were removed from the train, at least some of the passengers were still being injured.

48 If either inference is drawn, Mr Wicks and Mr Sheehan witnessed, at the scene, victims of the accident "being injured".

49 Even if neither of these inferences should be drawn, the fact remains that when Mr Wicks and Mr Sheehan arrived at the scene of the accident, those who had been on the train, and had survived, remained in peril. The agreed description of each of Mr Wicks and Mr Sheehan as "a rescuer" necessarily implies as much. Each sought to (and did) rescue at least some of those who had been on the train from peril. The observation of fallen electrical cables draped over the carriages is but a dramatic illustration of one kind of peril to which those who remained alive in the carriages were subject before they were taken to a place of safety.

50 Contrary to State Rail's submission, the expression "being ... put in peril" should not be given a meaning more restricted than that conveyed by the ordinary meaning of the words used. More particularly, "being ... put in peril" is not to be confined to the kind of apprehended casualty which was at issue in *Hambrook v Stokes Bros*, where a mother feared a runaway lorry might have injured her child. It is not to be read as confined to the cases discussed by Evatt J in *Chester v Waverley Corporation* by reference to the decision in *Hambrook*. Nor is the expression to be read down by reference to how the phrase was to be understood when used in s 4 of the *Law Reform (Miscellaneous Provisions) Act* 1944 (NSW). Rather, the expression should be given the meaning which the words ordinarily convey. A person is put in peril when put at risk; the person remains in peril (is "being put in peril") until the person ceases to be at risk.

51 The survivors of the derailment remained in peril until they had been rescued by being taken to a place of safety. Mr Wicks and Mr Sheehan witnessed, at the scene, victims of the accident being put in peril as a result of the negligence of State Rail.

52 State Rail's submission that neither Mr Wicks nor Mr Sheehan witnessed, at the scene, a victim or victims being killed, injured or put in peril should thus be rejected.

53 State Rail's further submission, that the combined effect of s 30(1) and s 30(2) requires that a plaintiff must demonstrate that the psychiatric injury of which complaint is made was occasioned by observation of what was happening to a *particular* victim, should also be rejected.

54 In a case such as the present, where there were many victims, s 30(2) does not require that a relationship be identified between an alleged psychiatric injury (or any particular part of that injury) and what happened to a particular victim. To read the provision as requiring establishment of so precise a connection would be unworkable. It would presuppose, wrongly, that the causes of psychiatric injury suffered as a result of exposure to an horrific scene of multiple deaths and injuries could be established by reference to component parts of that single event. Rather, the reference in s 30(1) to "another person (***the victim***)" should be read as "another person or persons (as the case requires)". The reference to "victim" in s 30(2)(a) is to be read as a reference to one or more of those persons. In a mass casualty of the kind now in issue, s 30(2)(a) is satisfied where there was a witnessing at the scene of one or more persons being killed, injured or put in peril, without any need for further attribution of part or all of the alleged injury to one or more specific deaths.

Conclusion and orders

55 Each appeal to this Court should be allowed with costs. In each matter, the orders of the Court of Appeal of the Supreme Court of New South Wales made on 31 August 2009 should be set aside. Because in neither case have there been findings about duty of care and about whether the appellant suffered a recognised psychiatric injury of which the negligence of State Rail was a cause, each matter must be remitted to the Court of Appeal for its further consideration in accordance with the reasons of this Court. Whether that Court can or should decide those issues itself, or whether it should remit the matter for retrial, will be a matter for further argument in, and decision by, the Court of Appeal. The costs of the proceedings in the Court of Appeal to date and the costs of the further proceedings in that Court should be in the discretion of that Court.